



Procedure No: EXP202201681 (PS/00345/2022)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection before the OFFICIAL COLLEGE OF ARCHITECTS OF GRANADA, with CIF: Q1875003D, holder of the website, www.coagranada.es/ (hereinafter "the accused party"), by virtue of the complaint filed by A.A.A. (hereinafter, "the complaining party"), for the alleged violation of data protection regulations:

Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), and considering the following:

BACKGROUND

FIRST: On 21/12/21, a document was received by this Agency, through the Council of Transparency and Data Protection of the Junta de Andalucía, submitted by the complainant, in which they indicated, among other things, the following:

"It has been observed that the College repeatedly fails to comply with the current regulations on personal data protection, thus endangering the privacy of the data of the members and therefore their rights.

The first of the facts on which this complaint is based refers to the absence of communication of the Data Protection Officer of the Official College of Architects of Granada to the Council of Transparency and Data Protection of Andalucía. Let us remember that according to current legislation (Art. 34.1.A. of the LOPDGDD), Professional Colleges are obliged to designate a Data Protection Officer and consequently notify the competent body, in this case, the Council of Transparency and Data Protection of Andalucía.

Likewise, and in relation to the appointment of the Data Protection Officer, as can be inferred from the accompanying document (Document No. 1), the Governing Board of the College, in a session held on April 11, 2019, adopted the following agreement: "To designate ***POSITION.1 of the Official College of Architects as the Data Protection Officer for the College of Architects."

Regardless of whether the appointment could violate the requirements set forth by Art. 37.5 of the GDPR, related to the qualities and knowledge of the DPO, what seems evident is that this appointment could contravene the postulates of the Article 29 Working Party when in its document "Guidelines on Data Protection Officers" it indicates that the organization must ensure the absence of conflict of interest in the figure of the DPO whenever they perform other functions, emphasizing that "the

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The DPD cannot hold a position in the organization that leads them to determine the purposes and means of processing."

On the website <https://coagranada.es/quejas-y-reclamaciones/>, corresponding to the Official College of Architects of Granada, there are two links for downloading respective forms for filing complaints and claims. It can be observed in these forms (Documents No. 2 and 3) that there is a privacy policy that does not meet all the requirements set forth in Articles 12 and 13 of the GDPR, and what is more serious, it indicates the ***POSITION.1 of the College as the Data Controller, which generates clear misinformation for the interested parties, since, as the body I am addressing well knows, the Data Controller is not the ***POSITION.1 but the Official College of Architects of Granada itself, which can create evident confusion and misinformation for the interested parties. It is even more serious when the role of DPD and the GDPR falls on the same person, the ***POSITION.1 of the College.

The website <https://coagranada.es/> presents an informational notice about cookies that does not

comply with the latest guidelines from the AEPD, as it indicates in that informational notice that mere use of the website implies acceptance for the installation of cookies.

The privacy policy of the Official College of Architects of Granada's website, which is available at the following web address (<https://coagranada.es/politica-de-privacidad-y-tratamiento-de-datos/> (Document No. 4), has the following deficiencies:

- 1.- The contact details of the Data Protection Officer are not provided.
- 2.- Incorrect application of the legitimizing basis of consent in section No. 5 of the policy, as this basis is chosen as the one that legitimizes the processing of personal data derived from sending emails, without a mechanism for expressing consent that meets the requirements established by current legislation.
- 3.- The legitimizing bases for data processing are not clearly and unequivocally identified, as in section No. 3 of this policy it is literally stated, "Consent will always be required for the processing of your personal data that may be for one or several specific purposes, which will be informed in advance with absolute transparency." However, later in section No. 6 of the website, other legitimizing bases different from consent are detailed, causing confusion about the true legitimizing bases applied by the entity.

Likewise, it was noted that there are privacy policies not adapted to current regulations (e.g., Visa Application Form attached as Document No. 5).

Finally, it should be noted that, as stated in the letter addressed to the Official College of Architects of Granada on 23-03-2021 (Document No. 6), there are well-founded reasons to believe that the disciplinary files instructed by the College do not have the corresponding technical and organizational measures that guarantee the

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confidentiality and integrity of the personal data contained therein, as there is no record of the incorporation of documents or actions into the file.

The complaint is accompanied by the following relevant documentation for the present procedure:

- Copy of the letter that A.A.A., registered ***COLEGIADO.1, sent to the complainant on 30/08/21, where, among other things, it can be read:

o "(...) The Governing Board of the College, in its session held on April 11, 2019, adopted, among others, the following agreement: "(AIG) 11.04.19/08.- APPOINT ***PUESTO.1 OF THE OFFICIAL COLLEGE OF ARCHITECTS AS DATA PROTECTION OFFICER FOR THE COLLEGE OF ARCHITECTS." Therefore, I can inform you that currently the Data Protection Officer of the Official College of Architects of Granada is ***PUESTO.1 D. B.B.B. (...)"

- Copy of the "Complaints Sheet" from the Official College of Architects of Granada where it can be read, among other things, the following information regarding the data protection policy:

o Official College of Architects of Granada. Plaza de San Agustín Nº3, 18001 Granada. General Secretariat. Area of Attention to Members and Users. The data collected will form part of the COAGRANADA File, with the ***PUESTO.1 being responsible for it, to whom a written request must be addressed in case of exercising the rights of access, opposition, rectification, and cancellation, in accordance with the L.O.P.D.

- Copy of the "Visa Application" addressed to the Dean of the Official College of Architects of Granada, where it can be read, among other things, the following information regarding the data protection policy:

o In accordance with the provisions of LO 15/1999 on the Protection of Personal Data, the existence of an automated file is reported, whose purpose is to provide the requested service. The Applicants expressly consent to the processing and transfer of the data existing in the automated file to the various Official Colleges of Architects in Spain and to other administrative bodies, for purposes related to the visa function. The signatories may exercise the right of access, rectification, opposition, and cancellation in writing before the C.O.A. of Granada, located at Plaza de San Agustín Nº 3, 18001

Granada, email coagranada@coagranada.org

SECOND: On 03/03/22, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the said complaint to the complained party, for them to proceed with its analysis and inform, within one month, about what was stated in the complaint letter.

THIRD: On 01/04/22, the complained party submitted a response to the request made by this Agency, in which, among other things, it stated:

“Specifically, the complainant refers to the text of the Legal Notice of the First Layer regarding the Cookie Policy, which, as of the date of the complaint, 21/12/21, displayed:

<https://coagranada.sedelectronica.es/>

“We use cookies to ensure that we give the best user experience on our website. If you continue to use this site, we will assume that you are in agreement. I accept.”

This Legal Notice of the First Layer was located at the bottom of the screen, and the method for obtaining consent was exclusively by pressing the “I accept” button, that is, through an unequivocal action performed by the user. However, when continuing to browse, the Initial Notice banner of the First Layer continued to appear in case the user wished to consult the Cookie Policy, which was found in the link located in the highlighted expression in orange “we will assume that you are in agreement.” At that time, it was interpreted that by continuing to browse, the user was showing agreement with the notice provided.

On March 29, 2022, this College contacted the company specialized in data protection compliance services, the entity “PSN Sercon S.L.U.”, which has analyzed and prepared a preliminary report of potential irregularities on the COA website, a report that is attached to this document as Annex I (INITIAL ANALYSIS OF THE OFFICIAL COLLEGE OF ARCHITECTS OF GRANADA WEBSITE) in which the main non-compliances detected in a first approach to the process of regularization and adaptation to the current regulatory framework in data protection and other applicable legislation to the COA Granada website are collected.

Work has already begun on the adaptation of the Privacy Policy of the COA Granada website and its Cookie Policy, as can be verified in the links:

- <https://coagranada.es/politica-de-privacidad-y-tratamiento-de-datos/>

- <https://coagranada.es/politica-sobre-recogida-y-tratamiento-de-cookies/>

In them, it is indicated that work is being done on their update and adaptation to current legislation.

The effectiveness controls referred to the Privacy Policy, the COA Granada, with the assistance of the entity PSN Sercon SLU, are currently as follows:

- A redesign of the Privacy Policy and its Record of Processing Activities is being carried out following the criteria of the Document “Report on Privacy Policies on the Internet, Adaptation to the GDPR,” 2018- AEPD.

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- An annual audit program has been established, in accordance with the proactive accountability principle of Article 24.1 of the GDPR.

In relation to the measures adopted for the adequacy of cookie usage to the applicable data protection regulations, the First Layer Cookie Notice has already been modified, following the guidelines of the document “Guide on the Use of Cookies,” published by the AEPD in 2020.

An audit of the existing cookies on the COA Granada website has also been conducted, using the tools recommended by the National Cybersecurity Institute (INCIBE),

<https://www.incibe.es/protege-tu-empresa/blog/son-lascookies-y-mostrarlas-sitio-web>, to subsequently perform an analysis of their utility, necessity, and validity. The results of this analysis are currently being prepared.

Additionally, the mechanism for obtaining consent has been replaced with a banner that includes the indications established by the applicable regulations: ownership of the website, purpose of the cookies, existence of third-party cookies, and the possibility of cookie configuration, rejection, and acceptance.

The Official College of Architects of Granada, through its Governing Board presided over by the Dean who signs this document, recognizes the need to adapt its cookie policy and privacy policy. Therefore, on March 30 of this year, it was decided to immediately commence the work of adapting and adjusting the aspects required by the AEPD in order to comply with the provisions established in both the LOPDGDD and the GDPR, as well as the LSSI.

Consequently, in light of all the above, and since the COA Granada is in the process of implementing corrective measures on its own initiative, it respectfully requests that the complaint that led to File 202201681 be ARCHIVED. This aligns with the position maintained by the Spanish Agency for Data Protection in its Resolution R/00461/2019 - Procedure No: A/00013/2019.

"Well, in view of the aforementioned circumstances, it is deemed necessary to emphasize that the National Court, in its Judgment of November 29, 2013, (Rec. 455/2011), Legal Ground Six warns, regarding the legal nature of this figure, which despite referring to the warning regulated in Article 45.6 of Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD), is fully applicable to the warning regulated by the LSSI, which 'does not constitute a sanction' and that it is 'corrective measures to cease the activity constituting the infringement' that replace the sanction. The Judgment understands that Article 45.6 of the LOPD (these considerations should be understood as made, in this regard, to Article 39 bis, 2 of the LSSI) grants the Spanish Agency for Data Protection a 'power' different from the sanctioning one, the exercise of which is conditioned on the concurrence of the special circumstances described in the provision."

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In accordance with the nature attributed to the warning - as an alternative to the sanction when, considering the circumstances of the case, the subject of the infringement is not deserving of it - whose purpose is the imposition of corrective measures, the cited SAN concludes that when the relevant corrective measures have already been adopted, the appropriate legal action will be to agree to archive the proceedings.

In the present case, taking into account that the corrective measures that should be imposed have already been adopted voluntarily, and that it has been verified that cookies are currently not being installed on the analyzed website, in harmony with the ruling of the Audiencia Nacional included in the SAN of 29/11/2013 (Rec. 455/2011), it must agree to archive the proceedings of the present procedure.

It is also worth mentioning Resolution R/03132/2016, of December 19, from the Spanish Agency for Data Protection - Procedure No: A/00411/2016:

"In accordance with the nature attributed to the warning as an alternative to the sanction when, considering the circumstances of the case, the subject of the infringement is not deserving of it, the ruling of the Audiencia Nacional cited concludes that when the corrective measures subject to the warning have already been adopted by the infringer, the appropriate legal action is to agree to archive the proceedings.

In view of the ruling included in the ruling of the Audiencia Nacional of 29/11/2013 (Rec. 455/2011), subsequently reinforced in its ruling dated 10/06/2014 (RJCA 2014, 571) (Rec. 166/2013), regarding the cases in which the responsible party for the infringement has adopted the appropriate corrective measures to remedy the created situation, and in accordance with what has been indicated, the proceedings practiced must be archived." Likewise, the Resolutions of this AEPD R/02863/2016 of December 14 - Procedure No: A/00242/2016, R/02906/2015 of November 17 - Procedure No: A/00172/2015, or R/00001/2015 of January 14 - Procedure No: A/00289/2014.

The ruling of the Audiencia Nacional (Contentious-Administrative Chamber, Section 1) of November 29, 2013 - JUR 2014\14399 - established the following:

"However, given that it was proven that the defendant had voluntarily adopted a series of corrective measures, which were communicated to the Spanish Agency for Data Protection, and that this agency had verified that the complainant's data was no longer locatable on the defendant's website, the

Spanish Agency for Data Protection did not consider it appropriate to impose on the defendant the obligation to carry out other corrective measures, and therefore did not agree to any requirement in this regard. It should be noted that upon becoming aware of the complaint, the defendant entity voluntarily contacted Google to have the URL where the Magazine and the article were reproduced removed, requested its collaborators to eliminate any names from its articles or any other information that could be considered personal data, and reviewed the citations in the private area of the website to delete any other sensitive data, and finally, to review the..."

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configuration of access so that search engines did not have access to the Journals.

Consequently, if the AEPD deemed that the relevant corrective measures had already been adopted in the case, as occurred, as expressly stated in the contested resolution, the appropriate administrative action in law was to archive the proceedings, without issuing any warning or requirement to the reported entity, as this is deduced from the correct interpretation of Article 45.6 of the LOPD, considering its systematic and teleological interpretation." The same terms are pronounced in Judgment No. 447/2016 of September 23 and No. 363/2016 of July 8, issued by the National Court (Contentious-Administrative Chamber, Section 1) - RJCA 2016\1072 and JUR 2016\166417 -

"Therefore, when, as occurs in the case at hand, considering the circumstances of the case and, in particular, the nature of the facts and the significant concurrence of the criteria established in the fifth section of Article 45 of the LOPD, it is deemed that the responsible party for the infringement is not deserving of the sanction provided for it, and that instead, they should be imposed the obligation to carry out certain corrective measures, the application of Article 45.6 of the LOPD is appropriate; the imposition of any 'warning' as a sanctioning measure is not permissible. On the contrary, what is appropriate in such a case is to 'warn' or require the responsible party to comply within the indicated timeframe with such obligation, as can be inferred from the interpretation of the examined legal provision." In the same sense, S 17 of October 2014 (JUR 2014, 267483) - appeal No. 150/2013 -, May 8, 2015 (JUR 2015, 154993) - appeal No. 122/2014 -, and July 8, 2016 (JUR 2016, 166417) - appeal No. 242/2014 -

Therefore, in light of the above, the warning, as the acting party intends, is not applicable instead of the imposed economic sanction, since, as has been reflected, the warning provided in the LOPD does not have a sanctioning nature."

FOURTH: On July 27, 2022, this Agency accessed the document "Complaints and Claims Form for Members":

https://coagranada.es/wp-content/uploads/2021/02/Hoja_queja_reclamaciones_colegiados_V02.pdf, where it can be read, at the bottom of the same, below the form, the following legend: "Official College of Architects of Granada. Plaza de San Agustín No. 3, 18001 Granada. General Secretariat. Area of Attention to Members and Users. The data collected will be part of the COAGRANADA File, with the ***POSITION.1 being responsible for it, to whom a written request must be directed in case of exercising the rights of access, opposition, rectification, and cancellation, in accordance with the L.O.P.D."

FIFTH: On July 27, 2022, this Agency accessed the website <https://www.coagranada.es/> verifying the following characteristics: C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

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regarding the processing of personal data, about its "Privacy Policy" and about its "Cookies Policy":

a).- Regarding the collection of personal data from users of the website:

1st.- Through the link <>, located at the top of the main page, the website displays a form where users can enter personal data such as name, email address, and subject.

To submit the form, the user must click on the option: _ I have read and accept the <> <>

b).- Regarding the "Privacy Policy" on the website

If one wishes to access the "Privacy Policy" through the link available in the contact form or through

the link available at the bottom of the main page, the website redirects the user to a new page <https://coagranada.es/politica-de-privacidad-y-tratamiento-de-datos/>, where information is provided regarding the protection of personal data of: the identity of the website owner and the Data Protection Officer; the purpose of the personal data obtained from the members; training/events; web users; citizen services; retention period of the obtained personal data; the legitimacy of the processing of personal data; the recipients; about the rights that assist users and where and how to request them, as well as the possibility of filing a complaint with the competent authority.

c).- Regarding the Cookies Policy on the website:

An inspection is carried out using the developer tools provided by the Mozilla Firefox browser, in which the cache has been cleared and cookies have been deleted. The EDPS tool (Web Evidence Collector) has also been used for analysis.

Observing the cookie installation panel, it can be verified that a PHPSESSID session cookie and another from Google, _GRECAPTCHA, are used.

According to Opinion 4/2012 of WP 194 on the exemption from the requirement of consent for cookies, the exemption applied to authentication cookies could apply to others specifically introduced to enhance the security of the requested service, for example, those cookies whose purpose is to detect erroneous and repeated attempts to connect to a website or to protect the connection system against abuses such as the case of _GRECAPTCHA.

However, after navigating the website, it is observed that non-exempt third-party cookies are installed, which are not mentioned in the policies, despite not having given consent through the banner. It is noted that these analytical cookies are installed through the insertion of an interactive map from the Institute for Geoenvironmental Health of the Vivo Sano Foundation on the page:

<https://coagranada.es/mapa-zonas-radon-en-elnuevo-cte-db-hs6/>.

2.- There is a cookie information banner on the main page with the following message:

"We use our own and third-party cookies for analytical, functional, and performance purposes to offer you services suitable for your profile, as well as our own and third-party advertising. The basis for processing is consent, except in the case of cookies that are essential for the proper functioning of the website. You can accept all cookies by clicking the <> button or configure them or reject their use by clicking the <> button. You can obtain more information in our <>,"

<>

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If you wish to reject all cookies that are not technical or necessary, by clicking on the <> option, it is verified that the website continues to use the same third-party cookies (from Google) mentioned earlier.

3.- If you access the cookie control panel through the <> link, the website displays a page or control panel confirming that the cookie groups are pre-checked in the "disabled" option:

- Strictly Necessary Cookies:

Off ☐ On.

- Analytical and Advertising Cookies:

Off ☐ On.

- Functional Cookies:

Off ☐ On.

- Analytical Cookies:

Off ☐ On.

<>

<>

If you choose "Save changes" without having accepted any cookie group, it is verified that the website continues to use the same cookies mentioned earlier.

4.- If you wish to access the "Cookies Policy" through the link available in the information banner of the first layer, through the link available in the control panel, or through the link available at the bottom of the main page, the website redirects the user to a new page

<https://coagranada.es/politica-sobre-recogida-y-tratamiento-de-cookies/> where information is provided

about: what cookies are, the definition and generic function of cookies; types of cookies; what type of cookies are used on the website and what their purpose is; how to deactivate cookies; identifies the cookies used and provides information on how to accept, deny, revoke consent, or delete cookies, through the tools installed on the website or through the browsers installed on the terminal equipment. SIXTH: On 06/09/22, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, upon finding reasonable indications of violation of the provisions established in the articles:

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Article 38.6 of the GDPR, for the conflict of interest detected in the appointment of ***POSITION.1 of the College as Data Protection Officer, with an initial fine of 5,000 euros (five thousand euros). It was also noted that the alleged infringement, if confirmed, could lead to the imposition of measures, according to Article 58.2 d) of the GDPR. In addition, and in accordance with Article 58.2 of the GDPR, it was indicated that the corrective measure that could be imposed would consist of ordering the appointment of a Data Protection Officer who is not involved in a conflict of interest, as stipulated in Article 38 of the GDPR.

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Article 13 of the GDPR, for the lack of information provided in the complaint forms regarding the processing of personal data obtained, with an initial fine of 8,000 euros (eight thousand euros). In addition, and in accordance with Article 58.2 of the GDPR, it was indicated that the corrective measure that could be imposed would consist of ordering the inclusion, in the forms used in the College where personal data is obtained, of all the information referred to in Article 13 of the GDPR regarding the processing of personal data.

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Article 22.2 of the LSSI, regarding the use of non-exempt third-party cookies without the user's consent, with an initial fine of 1,000 euros (one thousand euros).

SEVENTH: On 29/09/22, the entity claims submitted a written statement of allegations to the initiation of the proceedings in which it requests the filing of the procedure based on the following considerations:

1.- Regarding the conflict of interest concerning the data protection officer of this college.-

It points out that it cannot be presumed, as stated, such a "conflict of interest" based solely on the Statutes of COAGranada, regarding the composition and functions of the Governing Board, the Permanent Commission, and the functions of ***POSITION.1 of COAGranada, since, from the statutory provisions invoked by that AEPD (14.1, 13.2, 15, and 17), no existence of a "conflict of interest" by ***POSITION.1 of COAGranada regarding the protection of the interests of the Members and third parties in data protection matters can be inferred.

Regarding the violation of Article 38.6 of the GDPR, related to the eventual "conflict of interest," the enumeration of the functions of the Governing Board, as well as the Permanent Commission and ***POSITION.1, all established in the Particular Statutes of the Official College of Architects of Granada, is inappropriate and insufficient to reach the conclusion that "the existence of a conflict of interest on the part of ***POSITION.1 of the Official College of Architects of Granada to act as DPO of said Organization is evident."

COAGranada proceeded with the appointment of the DPO in the figure of its ***POSITION.1, thus ensuring the participation of the Data Protection Officer in all

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Issues related to the protection of personal data and, for its support and advice, it was provided with the assistance of external legal counsel.

It is also noted that the fact that COAGranada designated its ***POSITION.1 as Data Protection Officer was the subject of a complaint to this Agency on July 8, 2021, by the same complainant, which was archived by Resolution of this AEPD on 11/11/21. Therefore, there are two opposing Resolutions, in such a way that, in the first, no infringing conduct is attributed regarding the appointment of the Data Protection Officer in the figure of ***POSITION.1 of the College, and, however, in the second, with said appointment, COAGranada is attributed an infringement of Article 38.6 of the GDPR.

Finally, it states that the Official College of Architects of Granada decided to appoint a new Data Protection Officer on April 26, 2022, preemptively addressing the proposed corrective measure and requests that this decision be taken into account under Article 83.2.c) of the GDPR.

2.- Regarding the lack of information in the forms about "complaints and claims."

Regarding the sanction referred to for the violation of Article 13 GDPR, they state that all the information referred to in Article 13 of the GDPR has been incorporated into the forms available to both members and the general public, therefore they request that this measure be taken into account under Article 83.2.c) of the GDPR.

3.- Regarding the cookie policy

They state that the non-compliance is due to the use of a third-party cookie for the use of an interactive map and request that for the determination of the amount of the sanction, the absolute absence of culpability or the unlawfulness of the act be taken into account as a consequence of the significant concurrence of several of the criteria set out in Article 40, taking as a basis the following criteria:

- Intentionality: COAGranada made the interactive map available to its members to facilitate compliance with the provisions contained in Royal Decree 732/2019, of December 20, which amended the Technical Building Code approved by RD 314/2006, of March 17, providing information on the basic concepts related to the regulatory modification, without the intention of collecting any information.
- Time period during which the potential infringement was committed. The map has already been removed from the website and was available to the public during the period established between February 10, 2022, and September 20, 2022, the latter being the day it was removed.
- Recidivism for committing infringements of the same nature: This College has not been previously condemned for any similar infringement.

4.- Regarding the improper or erroneous interpretation of Article 77.2 of the LOPDGDD

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At this point, the application of Article 77.2 of the LOPDGDD is reiterated in the same terms as already stated in their writing dated 1/04/22.

Regarding the aforementioned Article 77 of the LOPDGDD, they allege that the AEPD distinguishes between the public and "private" functions exercised or held by Professional Associations, but they state that these associative entities of professionals are Corporations of Public Law and it is considered inappropriate to attribute only as "private functions" those that are the subject of the alleged infringing conduct attributed, and to "disassociate" them without reason or justification from the public functions, in which they can also be fully incorporated.

Below are the statutory provisions invoked that imply the exercise of public functions, which are perfectly extensible to the conduct attributed; and these can be perfectly intertwined with such public functions as Article 13.2. It will correspond to the Governing Board, specifically; Article 15. The Permanent Commission and Article 17. The ***POSITION.1. "It corresponds to the ***POSITION.1: It is also stated that the Spanish Agency for Data Protection, in its Resolutions of May 24, 2021, Procedure No.: PS/00416/2020 and of May 11, 2021, Procedure No.: PS/00347/2020, has adopted a

different criterion than that followed in the present Sanctioning File against Corporations of Public Law. EIGHTH: On 10/04/23, this Agency accessed the website <https://www.coagranada.es/> again, becoming aware of the following characteristics regarding its "Cookie Policy":

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that a single cookie “_GRECAPTCHA” is used, whose purpose is to provide its risk analysis, such as detecting erroneous and repeated connection attempts.

NINTH: On 10/04/23, this Agency accessed the complaints and claims sheet of the College of Architects of Granada, accessible through the link <https://coagranada.es/quejas-y-reclamaciones/>, verifying that the following message can be read:

Official College of Architects of Granada. Plaza de San Agustín No. 3, 18001 Granada. General Secretariat. Area of Attention to the Member and the User.

In compliance with the provisions of Regulation EU 2016/679, of April 27, 2016, hereinafter GDPR, the Official College of Architects of Granada located at PLAZA DE SAN AGUSTÍN 3, 18001 GRANADA and NIF No. Q1875003D informs you that the collection and processing of your data through this form is intended for the administrative, tax, and accounting management provided for in the legislation of professional colleges and our statutes. Your data may be communicated to the General Council of Official Colleges of Architects, related bodies, and the Public Administration without prejudice to other legally provided transfers. Your data will be retained.

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for the time necessary to comply with legal obligations. At any time, you may consult additional information regarding this processing or exercise your rights of access, rectification, deletion, opposition, portability, and limitation of processing by directing your request to the address indicated above or by email to protecciondedatos@coagranada.org. Furthermore, if you believe your right to the protection of personal data has been violated, you may file a complaint with the Spanish Agency for the Protection of Data (www.agpd.es).

TENTH: On 10/04/23, a resolution proposal was made to sanction the responding party for the infringement of Article 38.6 of the GDPR, due to the conflict of interest detected in the appointment of ***POSITION.1 of the College as Data Protection Delegate, with a fine of 5,000 euros (five thousand euros); for the infringement of Article 13 of the GDPR, due to the lack of information provided in the complaint forms regarding the processing of personal data obtained, with a fine of 8,000 euros (eight thousand euros); and for the infringement of Article 22.2 of the LSSI, regarding the use of non-exempt third-party cookies without the user's consent, with a fine of 1,000 euros (one thousand euros).

It was also proposed that the responding party be required to adopt the necessary measures to align its actions with personal data protection regulations within a determined timeframe.

ELEVENTH: On 28/04/23, this Agency received a written statement of allegations regarding the resolution proposal, in which the responding party reiterates and confirms its previous allegations and again requests the filing of the procedure. In this document, the responding party states the following: FIRST.- REGARDING THE “CONFLICT OF INTEREST” OF ***POSITION.1 OF THIS COLLEGE AS DATA PROTECTION DELEGATE, THE RESOLUTION PROPOSAL IS INCONGRUENT AND CONTINUES TO DISTORT THE PRINCIPLES OF TYPICITY AND LEGALITY, WHICH ARE ESSENTIAL TO THE SANCTIONING PROCEDURE, OPERATING IN FAVOR OF COAGRANADA AND AGAINST THIS AGENCY.-

The Resolution Proposal does not actually refute the allegations made by this College, especially concerning the violation of the principles of typicity and legality. Moreover, without addressing and discussing the aforementioned principles invoked in our statement of allegations, it considers, without any basis or evidentiary element—cf. Last paragraph of FD II a) that “the existence of a conflict of interest on the part of ***POSITION.1 of the Official College of Architects of Granada to act as DPD of said organization is evident.”

At this point, it is necessary to recall that this Agency continues to rely on "Guidelines" or "recommended practices of the Working Group on Data Protection." It is evident that any administrative infringement must take as its inescapable foundation a normative element (legal or regulatory) that, in this case, does not exist, since it is entirely inappropriate to take guidelines or directives as a basis for imputation.

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recommendations, as this implies a violation of the principles of typicity and legality. Even in Article 29 of the "Guidelines on Data Protection Officers (DPO)" of that Working Group, an "example" is provided (that "a DPO is asked to represent the controller or the processor before the courts in cases related to data protection").

The mere mention of an example in a sanctioning procedure already implies, per se, the disregard of the essential factual element that must undermine the principle of presumption of innocence and, furthermore, even applying such an implausible example, there are no similar circumstances in the present sanctioning procedure. On the other hand, the considerations of the aforementioned "Working Group" regarding the "conflict of interest of the DPO" are extremely generic and, in no way, can they serve as a basis to undermine the aforementioned presumption of innocence.

Moreover, even applying such "Criteria" - which is rejected - would not result in the existence of a "conflict of interest" by appointing the ***POSITION.1 of the College, with the assistance and support of the Legal Advisory Service of COAGranada, as DPO. The "Criteria" themselves establish that the determination or weighing of the existence of a "conflict of interest" in the figure of the DPO must be "considered on a case-by-case basis," which has not been done by that AEPD.

In this regard, it is worth citing the Judgment of the Court of Justice of the European Union (Sixth Chamber) of February 9, 2023, Case C-453/21: "Fourth preliminary question 43 Thirdly, regarding the context in which Article 38(6) of the GDPR is situated, it should be noted that, according to Article 39(1)(b) of the GDPR, the data protection officer has the function, in particular, of overseeing compliance with the provisions of the GDPR, other data protection provisions of the Union or of the Member States, and the policies of the controller or the processor regarding personal data protection, including the assignment of responsibilities, awareness-raising and training of staff involved in processing operations, and the corresponding audits.

It follows that the functions or tasks that lead a data protection officer to determine the purposes and means of processing personal data of the controller or its processor cannot be entrusted to a data protection officer. Indeed, under Union Law or the Law of the Member States regarding data protection, the control of those purposes and means must be carried out independently by that officer. The determination of the existence of a conflict of interest, in the sense of Article 38(6) of the GDPR, must be carried out on a case-by-case basis, based on an assessment of the entirety of the relevant circumstances, in particular, the organizational structure of the controller or its processor and in light of all applicable regulations, including any policies of the latter.

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In light of all the above considerations, it is appropriate to respond to the fourth preliminary question that Article 38, paragraph 6, of the GDPR must be interpreted to mean that a "conflict of interest" may exist, in the sense of this provision, when other functions or duties are assigned to a data protection officer that would lead them to determine the purposes and means of processing personal data within the controller or its processor, which must be determined in each case by the national judge based on all relevant circumstances, particularly the organizational structure of the controller or its processor and in light of all applicable regulations, including any policies of the latter.

By virtue of all the above, the CJEU (Sixth Chamber) declares: (...) 2) Article 38, paragraph 6, of Regulation 2016/679 must be interpreted to mean that a "conflict of interest" may exist, in the sense of this provision, when other functions or duties are assigned to a data protection officer that would lead them to determine the purposes and means of processing personal data within the controller or its processor, which must be determined in each case by the national judge based on all relevant circumstances, particularly the organizational structure of the controller or its processor and in light of all applicable regulations, including any policies of the latter.

At this point, that Agency confuses the very concept of "conflict of interest" when it seems to equate the position of ***POSITION.1 of the COAGranada with "management positions," given that, as a result of the application of Article 17 of the Particular Statutes of COAGranada, it is evident that ***POSITION.1 does not hold such senior management functions in any way, a concept that is also applicable to other types of entities, not to COAGranada.

To these considerations, as could not be otherwise, that AEPD does not provide any response or factual or legal reasoning that would undermine them.

And this is particularly relevant, given that the expression "conflict of interest" implies the application of an indeterminate legal concept that, in a sanctioning procedure, as it restricts rights, must be applied with extreme caution and with a substantial factual, evidentiary, and legal-normative basis that supports it, all of which has not occurred in the present case.

Indeed, "the conflict of interest" must be proven by that Agency and not presumed, which is what has occurred in the present Sanctioning Procedure. It cannot be presumed, as stated, such a "conflict of interest" by only taking the Statutes of COAGranada as a basis, regarding the composition and functions of the Governing Board, the Permanent Commission, and the functions of ***POSITION.1 of COAGranada, since from the statutory provisions invoked by that AEPD (14.1, 13.2, 15, and 17) there is no inference of any "conflict of interest" on the part of the

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***POSITION.1 of COAGranada regarding the protection of the interests of the Members and third parties in matters of data protection.

That is to say, from the statutory provisions that regulate the functions of the Governing Board (Art. 13.2), its composition (Article 14.1), the Permanent Commission of the Governing Board (Article 15), and especially the competencies of ***POSITION.1 (Article 17), it cannot be inferred in any way that it performs functions that imply a "conflict of interest" with the figure of the DPO.

COAGranada proceeded to appoint the DPO in the figure of its ***POSITION.1, thus ensuring the participation of the DPO in all matters related to the protection of personal data, and for their support and advice, provided them with the assistance of the Legal Advisory Service of COAGranada.

2.- As mentioned, the sanctioning power of the Public Administration is directly linked to the principles that inspire criminal law, given that both powers are expressions of the Legal System of the State, as expressed in the Constitution itself (art. 25) and recognized by the jurisprudence of the Constitutional Court since STC 18/1981, of June 8, and a very reiterated jurisprudential doctrine of the Supreme Court (STS September 29, 1980, and STS November 4, 1980, and STS November 10, 1980, among others).

The sanctioning power of the Administration has its constitutional basis in Article 25 of the CE. It is a reiterated doctrine of the Constitutional Court (STC 77/83, of October 3, STS 42/87, of April 7; STC 29/1989, of February 6) that the administrative sanctioning system includes a double guarantee: the first, of a material nature, implies the need for normative predetermination of unlawful conduct and corresponding sanctions, through legal provisions that allow predicting, with sufficient certainty, the conduct that constitutes an infringement and the penalties or sanctions applicable.

This arises from the mandate of taxativity or "lex certa" and is specified in the requirement of normative predetermination of unlawful conduct and corresponding sanctions, which places upon the legislator the duty to configure them in the sanctioning laws with the greatest possible precision (principle of

typicity) so that citizens can know in advance the scope of what is prohibited and thus foresee the consequences of their actions. (STC 242/2005, of October 10, and STC 162/2008, of December 15). The second, of a formal nature, refers to the rank of the norms typifying the infringements and regulating the sanctions, since the term "current legislation" contained in art. 25.1 CE expresses a reservation of Law.

Therefore, the formal guarantee implies that the law must contain the determination of the essential elements. Well, the material guarantee constitutes the aforementioned principle of typicity, which "implies the imperative need for normative predetermination of infringing conduct and corresponding sanctions, that is, the existence of legal provisions (lex

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previous) that allow predicting with sufficient certainty (lex certa) those behaviors and knowing what to expect regarding responsibility and potential sanction" (Cf. STC 61/1990, of March 29 and STC 24/1996 of February 13; STS April 20, 2006; STS November 18, 2000; STS December 20, 1999; SAN of December 2, 2011; STS No. 74/2017, Administrative Litigation Chamber, of January 23). For its part, Article 27 of Law 40/2015 of October 1, of LRJSP, incorporates the so-called principle of typicity, according to which only violations of the legal order that are expressly provided as such by a Law constitute administrative infractions.

The principle of typicity, related to the principle of legality, requires that the act that allegedly has an illicit character is expressly provided as an infraction in some provision of the administrative legal order. For a behavior to be classified as typical, and therefore, unlawful and punishable, it is necessary that there is a coincidence between the action performed by the actor and the behavior described in the applicable legal provision.

Through the application of the principle of typicity, it is intended to verify whether an event that occurred in reality meets all the characteristics described in the law as prerequisites for the infringement of a sanctioning norm. For this, it is necessary that the action is subsumed in a sanctioning provision, understanding by such that part of the illicit that describes all the subjective and objective elements that, taken together, give rise to the infringement of the norm. According to Judgment No. 4672/2022 of December 23, of the Superior Court of Justice of Catalonia, (Administrative Litigation Chamber, Section 4) - JUR 2023\48531-: "Requirements of the principle of typicity in administrative sanctioning matters which, as is well known, despite the notable brevity and considering the implicit content of the aforementioned Article 25 of the Constitution (judgment of the Constitutional Court 34/1996, of March 11 (RTC 1996, 34)), has been highlighted since ancient times by constitutional jurisprudence in relation to what has been called the material guarantee of the principle of legality (among many others, since the judgment of the Constitutional Court 42/1987, of April 7 (RTC 1987, 42), by the judgments of the Constitutional Court 3, 11, 12, 100 and 101/1988, of June 8 (RTC 1988, 101), 161, 200 and 219/1989, of December 21 (RTC 1989, 219), 61/1990, of March 29 (RTC 1990, 61), 207/1990, of December 17 (RTC 1990, 207), 120 and 212/1996, 133/1999, of July 14, 142/1999, of July 22 (RTC 1999, 142), and 60 and 276/2000, of November 16 (RTC 2000, 276)), which is identified with the traditional principle of typicity of administrative offenses and sanctions (judgments of the Supreme Court, Third Chamber, dated January 16 and June 8, 1992, February 5 and October 2, 2002) and which always requires the necessary certain normative predetermination of the specific behaviors that by action or omission are deemed to constitute an administrative illicit, with prohibition of potential analogical interpretations for this purpose or extensive in malam partem (judgment of the Constitutional Court 125/2001, of June 4 (RTC 2001, 125), citing its previous judgments 81/1995, of June 5 (RTC 1995, 81), 34/1996, of March 11, (RTC 1996, 34) 64/2001, of March 17 (RTC 2001, 64), and orders of the Constitutional Court 3/1993, of January 14, and 72/1993, of March 1; as well as judgment of the Supreme Court, Third Chamber, of May 30, 1981, of 4.

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of June 1983, of December 29, 1987, of October 20, 1998, of February 22, 2000, and of March 3, 2003). Or to put it in the words of the Constitutional Court itself, among many others before and after in its ruling 113/2002, of May 9 (RTC 2002, 113), in the following terms: "(...) Specifically, in relation to the material guarantee to which the sanctioning power of the Administration is subject, we have specified that the normative predetermination implies the existence of legal precepts (*lex previa*) that allow predicting with a sufficient degree of certainty (*lex certa*) the infringing behaviors and knowing in advance what to expect regarding the associated responsibility and the eventual sanction that the infringer may deserve (STC 219/1989, of December 21, FJ 4; 61/1990, of March 29, FJ 7; and 133/1999, of July 15, FJ 2)". It is also well-established jurisprudential doctrine that teaches that in the exercise of its sanctioning administrative power, the acting sanctioning administration does not properly respond to the exercise of an administrative power of essence or discretionary tendency but predominantly regulated for the application to each specific case of the pre-established sanctioning normative framework in the applicable legal system, which entails, from the outset, the requirement of necessary adequacy and rigor in the qualification of the imputed facts and in their precise and adequate subsumption in the legally defined infringing type for its correction, in such a way that the contrary would certainly result in a violation of the fundamental subjective right already pointed out and recognized by all in the current constitutional text under Article 25.1 of the Constitution (rulings of the Constitutional Court 77/1983, of October 3 (RTC 1983, 77), 1997 and 3/1988, of January 21 (RTC 1988, 3)), which, being susceptible to constitutional protection, would incur an eventual sanctioning administrative action infringing the same in the vice of nullity of full right currently provided for by Article 47.1.a) of Law 39/2015".

3.- Finally, in relation to the non-compliance related to the appointment of the DPD, it should be noted that, prior to the receipt of Resolution PS/00345/2022, as this Agency is aware, the COAGranada made the decision to appoint a new Data Protection Delegate on April 26, 2022, with electronic receipt no. REGAGE22e00014921519, in compliance with the requirements of Article 38 of the GDPR. This College has anticipated the proposed corrective measure and we request that this decision be taken into account under Article 83.2.c) of the GDPR, which establishes the following: "[...] When deciding on the imposition of an administrative fine and its amount in each individual case, the following will be duly taken into account: c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects." In this regard, we also invoke the application of proportionality of Article 29.3 LRJSP.

SECOND.- ON THE LACK OF INFORMATION IN THE "COMPLAINTS AND CLAIMS" FORMS.

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Regarding the sanction referred to for the violation of Article 13 of the GDPR, we reiterate what was stated in Allegation One, in the sense that there has been no response to and the claims made by COAGranada in its written allegations have not been addressed. As stated in this document, the proposed corrective measure was applied as soon as this fact was known, and all the information referred to in Article 13 of the GDPR has been incorporated into the forms available to both members and the general public. Therefore, we request that this measure be taken into account under Article 83.2.c) of the GDPR.

At this point, related to what was stated in Allegation One, the lack of concurrence of an essential element implies that the active subject has not committed the conduct described in the type allegedly violated by their action, which makes it perfectly lawful. That is to say, the atypicality determines the absence of responsibility for the responsible subject and, therefore, the impossibility of deploying the effects of the *ius puniendi* on the subject. Moreover, for the action to be considered typical, and thus to have legal effects, it is necessary that alongside the objective elements of typicality, the so-called subjective elements of typicality also concur. Based on the principle of subjective typicality, it is required that, in order to proceed with imputing and sanctioning for an action, the voluntary nature of the active subject be confirmed. In this sense, the jurisprudence has repeatedly demanded the

existence of culpability in order to impose an administrative sanction, to the extent that today it is configured as one of the pillars on which administrative sanctioning law is based, dismissing any sanction outside of culpable or negligent conduct and, therefore, rejecting what has traditionally been referred to as objective responsibility.

Specifically, regarding culpability, the Constitutional Court has declared that, indeed, the Spanish Constitution undoubtedly enshrines the principle of culpability as a basic structural principle of Criminal Law and has added that, however, the constitutional enshrinement of this principle does not imply in any way that the Constitution has converted a specific way of understanding it into a norm (Cf. STC 150/1991).

This principle of culpability governs in matters of administrative infractions, since to the extent that the sanction for such an infraction is one of the manifestations of the State's *ius puniendi*, a regime of objective responsibility or without fault is inadmissible in our legal system (Cf. STC 76/1990). This same ruling requires culpability in the case of administrative infractions committed by legal entities, stating that "...Even this Constitutional Court has qualified the principle of personal responsibility for one's own acts as correct, which is a principle of the personality of the penalty or sanction (STC 219/1988).

All of this, however, does not prevent our Administrative Law from admitting the direct responsibility of legal entities, thus recognizing their capacity to infringe. This does not mean, in any way, that in the case of the

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Administrative offenses committed by legal entities have had the subjective element of fault removed. The Law 40/2015, on the Legal Regime of the Public Sector, states in its article 28 that "only natural and legal persons, as well as, when a law recognizes their capacity to act, groups of affected individuals, unions, and entities without legal personality and independent or autonomous estates, may be sanctioned for acts constituting administrative offenses, provided they are responsible for the same due to intent or fault."

The majority jurisprudence of our Supreme Court (based on its rulings of January 24 and 25 and May 9, 1983) and the doctrine of the Constitutional Court (after its ruling STC 76/1990) emphasize that the principle of culpability, even without explicit recognition in the Constitution, is inferred from the principles of legality and prohibition of excess (art. 25.1 CE), or from the inherent requirements of a Rule of Law, and requires the existence of intent or fault.

The requirement of culpability in sanctioning administrative law has permeated the jurisprudence of the Supreme Court in the various material areas in which it has had the opportunity to rule, having discarded, due to legal and constitutional requirements, objective liability, that is, irrespective of any culpable action. Thus, the principle of culpability constitutes an essential element of the administrative offense.

THIRD.- ON THE COOKIE POLICY

Regarding the proposed sanction "On the Cookie Policy," as recognized by the Proposal for Resolution itself, upon entering the website for the first time, without accepting cookies or taking any action on the page, it can be verified that no cookies other than technical or necessary ones are used. The detected non-compliance is due to the use of a third-party cookie through the use of an interactive map. Based on art. 39 bis a) of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce, we request that the establishment of the amount of the sanction take into account the absolute absence of culpability of the accused or the unlawfulness of the act as a consequence of the significant concurrence of several of the criteria stated in article 40, taking as a basis the following criteria:

- Intent: The COAGranada made the interactive map available to its members to facilitate compliance with the provisions contained in Royal Decree 732/2019, of December 20, which amended the

Technical Building Code approved by Royal Decree 314/2006, of March 17, providing information on the basic concepts related to the regulatory modification, without the intention of collecting any information.

- Time period during which the potential offense was committed. The map has already been removed from the website and was available to the public during the period established between February 10, 2022, and was removed on the 20th.

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September 2022. - Recidivism for committing infractions of the same nature: This College has not been previously convicted of any similar infraction. In this regard, we invoke, as in the previous Allegation, the principle of culpability and, additionally, the principle of proportionality.

FOURTH.- WE UNDERSTAND THAT THE RESOLUTION PROPOSAL REITERATES THE INCORRECT OR ERRONEOUS INTERPRETATION OF ARTICLE 77.2 OF ORGANIC LAW 3/2018 OF DECEMBER 5, ON THE PROTECTION OF PERSONAL DATA AND GUARANTEE OF DIGITAL RIGHTS (LOPDGDD).

We invoke the application of Article 77.2 of the LOPDGDD in the same terms as we already stated in our letter dated April 1, 2022. It is also necessary to remember that we are within a sanctioning procedure, in which the principles inspiring criminal law, such as the presumption of innocence and in dubio pro reo, apply.

Regarding the aforementioned Article 77 of the LOPDGDD, that Agency distinguishes between the public and "private" functions exercised or held by Professional Colleges. However, in addition to being associative entities of professionals, based on private law, what is fundamental for the purposes at hand is that they are Corporations of Public Law. At this point, we believe it is inappropriate to attribute only as "private functions" those that are the subject of the alleged infringing conduct attributed and to "disassociate" them without reason or justification from the public functions, in which they can also be fully incorporated.

What is entirely inappropriate is to attempt to unjustifiably justify the exercise of "private functions" by intertwining it with a norm that is not applicable, such as Law 7/2006, of May 31, on the exercise of regulated professions and professional colleges of the Autonomous Community of Catalonia.

This Law is not applicable either by reason of the subject matter or by territory, and even less so within a sanctioning procedure, which leads us again to the violation of the principles of legality and specificity, without being able to "presume," without any evidentiary element or factual and legal foundation, the exercise of private functions, erring in the normative framework of application and assuming that the alleged infractions have occurred in the exercise of such functions.

If we take into consideration the statutory provisions that this AEPD invokes regarding the alleged "conflict of interest" of ***POSITION.1 of COAGranada, the very statutory provisions invoked by this AEPD imply the exercise of public functions, which are perfectly extendable to the conduct attributed; and these can be perfectly intertwined as public functions.

- Article 13.2. It shall correspond to the Governing Board, specifically: "a) To draft projects of general norms and promote the...

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Approval and amendment procedure of the statutes. b) Propose to the General Assembly the matters that fall within its competence, provide advice and technical support, and arbitrate the means conducive to the exact compliance with what has been agreed upon by the same. c) Resolve the requests for the incorporation of new members, for the resignation of members, and regarding the

suspension of membership services and the status of member. d) Authorize the registration of Professional Societies in the corresponding professional registry, upon request, which may be submitted electronically through the single window established in this College. e) Collect, distribute, and manage the funds of the College, in accordance with the provisions set forth in the Title on Economic and Asset Regime of these Particular Statutes. h) Promote actions of all kinds in favor of the profession. i) Be informed of the actions carried out due to urgency by the Dean or by the Permanent Commission, assuming or censuring them when they are not within their own competence. j) Resolve any proposals that may be presented to it by the Permanent Commission. k) Exercise disciplinary functions and adopt precautionary measures, initiating, ex officio or by virtue of a complaint, the disciplinary proceedings, in which it will issue the corresponding Resolution. The exercise of such functions may be delegated to the Dean, to a group of members of the Governing Board, or to a Commission. l) Forward to the Investigative Commission the files initiated in disciplinary matters, for processing and formulation of the corresponding resolution proposal. m) Initially approve the regulations for the operation of assistance and telematic voting in the General Assembly, so that it can be definitively approved by the General Assembly of the Members.”

-Article 15. The Permanent Commission. “The Governing Board shall constitute itself as the Permanent Commission, composed of the Dean, the ***POSITION.1 and the Treasurer as inherent members, for the fulfillment of the functions assigned to it in these Statutes. It is the responsibility of the Permanent Commission of the Governing Board of the College: 1. Implement the guidelines issued by the Governing Board. 2. Propose to the Governing Board any acts that are a consequence of the competencies it has assumed. 3. Adopt the necessary measures for the fulfillment of the agreements of the Governing Board. 5. Make decisions on urgent matters that, being within the competence of the Governing Board, cannot be postponed until its meeting, and these acts must be reported for ratification at the first session held by the Governing Board. 6. Those functions expressly delegated to it by the Governing Board.”

-Article 17. The ***POSITION.1. “It is the responsibility of the ***POSITION.1: 1. Organize, with the approval of the Dean and in accordance with the criteria of the Governing Board, the Secretariat of the College. 2. Provisionally resolve the admission of new members in accordance with the provisions of these Particular Statutes. 3. Receive and process all requests and communications addressed to the College and its different Bodies, reporting them to the appropriate parties. 4. Issue the certifications that are requested and must be issued and maintain the register book of members. 6. Make notifications of new memberships and resignations. 7. Keep the minutes books of the meetings of the General Assembly of members, Governing Board, and the Commission.

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Permanent and transfer the agreements, monitoring compliance with them.”

10. Direct the services of the offices of the College.”

And, as a complement to the previous statutory provisions, Article 6 enumerates the functions of COAGranada, fully of Public Law -

Article 6. Functions. “Without prejudice to those reserved for the Superior Council of the Colleges of Architects of Spain and the Andalusian Council of Official Colleges of Architects, the functions of the Official College of Architects of Granada, within its territorial scope, are those expressly determined for the achievement of its purposes in the legislation on Professional Colleges and, specifically, the following:

1. Registration:

e) To provide the judicial bodies and Public Administrations, in accordance with the laws, with the list of members who may be required to intervene as experts or to designate them directly, as appropriate.

f) To equip itself with adequate electronic communication systems and computer programs that allow citizens, members, and other practicing architects in its territory, Public Administrations, and declared competent bodies, to resolve their administrative relations with them in a single-window regime,

without prejudice to being able to do so through other means as well.

g) To establish and maintain a telematic and in-person service for the attention of consumers and users, as well as members and other architects, with the functions established by law and those regulated by the Superior Council of Colleges of Architects, the Andalusian Council of Official Colleges of Architects, and this College, in accordance with the law.

2. Representation and relations with Public Administrations:

a) To represent the profession, within the territorial scope that corresponds to it, before the public authorities of the Autonomous Community of Andalusia and other Public Administrations, defending the general interests of the profession, providing its collaboration in matters of its competence, for which it may enter into agreements for the realization of activities of common interest, as well as for the promotion of actions aimed at defending the public interest and, in particular, the users of the professional services of the members, with the various Public Administrations and with public or private bodies. When representation must take place before bodies with competence outside the scope of the College and refers to matters that transcend its territorial scope, the actions will be carried out with the prior knowledge or through the mediation of the Superior Council or the Andalusian Council, as appropriate.

b) Prior agreement of the Governing Council of the Junta de Andalucía, which must be published in the Official Bulletin of the Junta de Andalucía, to exercise administrative functions related to the profession, all of which must be preceded by the report of the Andalusian Council of Official Colleges of Architects and the express acceptance of the College.

c) To act before Judges and Courts, both within and outside its territorial scope, in its own name and in defense of the purposes and interests of the profession and of the professional members of the College or practicing in its territorial scope, as well as in the name, on behalf of, and in procedural substitution of these, in the defense that they themselves voluntarily entrust to it.

d) To provide information in judicial or administrative proceedings where fees or other professional issues are discussed, when required to do so.

e) To inform, in accordance with the Laws, the...

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draft provisions of a local scope that regulate or directly affect the professional attributions or the conditions of activity of Architects, as well as those of an autonomous scope when it does not correspond to the Andalusian Council. f) Cooperate in the improvement of teaching and research in architecture, urban planning, and the environment. g) Participate and represent the profession in congresses, juries, and advisory bodies at the request of the Administration or individuals. i) Exercise the right of petition in accordance with the Law. j) Attend, in its capacity as the competent body, to requests for information that are made to it, in accordance with the provisions of Spanish legislation or European Union law, both by individuals and by members and other practicing architects or by national or international bodies authorized by law.

3. Regarding organization: a) Safeguard the ethics and dignity of the profession, both in the reciprocal relationships of Architects and in their relationships with their clients or with the organizations in which they carry out their professional tasks. b) Ensure the professional independence of the Architect in any of the modalities of professional practice. c) Prevent and pursue professional intrusion before the Courts. d) Establish, within the scope of its competence, criteria on the minimum levels of professional diligence required, in particular, regarding the presentation of works and the quality control and monitoring of the projects. e) Endorse, in accordance with what is established in the applicable regulatory or legal norms, the professional works of Architects. The endorsement shall in no case include fees, nor the other contractual conditions for the provision of professional services agreed upon by the Architects with their clients. f) Prevent unfair competition among Architects in the terms established in the current legislation on unfair competition. g) Exercise disciplinary power over

Architects and Professional Societies that fail to comply with their collegiate or professional duties, both legal and deontological, approving for this purpose a Code of Ethics, in accordance with the provisions of the Law and by the Superior Council of the Colleges of Architects of Spain and the Andalusian Council of Official Colleges of Architects. This Code shall be accessible to members and other practicing architects and to consumers and users of their professional services. i) Advise members and other practicing architects as well as consumers and users of their professional services on the conditions of contracting the professional services of Architects, seeking the best definition and guarantee of the respective obligations and rights. j) Establish, within the scope of its competence, regulations on professional activity in the exercise of these organizational functions, subject to the Statutes and other general provisions of application.

4. Regarding service: e) Resolve by arbitration, in accordance with the legislation on arbitration and the collegiate procedural regulations, conflicts between members and citizens, or raised by the latter, that are submitted to it in matters related to the professional competence of Architects. f) Establish fee scales with a merely indicative character solely for the purposes of cost assessments in conflicts or jurisdictional proceedings. i) Provide the collaboration required of it at C/ Jorge Juan, 6

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the organization and dissemination of competitions affecting Architects and ensuring that their calls comply with the regulations governing professional practice. m) Exercise any administrative powers legally attributed to it, collaborate with the Administration by conducting studies or issuing reports, and exercise the powers attributed to it by other legal or regulatory norms, or delegated by Public Administrations or derived from collaboration agreements. n) Prepare the citizen service charter, provide information about the content of the profession and the registered members of the College, respecting the provisions established in the regulations on the protection of personal data. o) Ensure collaboration with the Administration of the Junta de Andalucía and its dependent bodies as well as with other Public Administrations and public entities in monitoring the situations of members who, due to their status as public employees at its service, may be affected by reasons of incompatibility for the exercise of professional activities. p) Exercise arbitration and mediation functions in conflicts that arise for professional reasons between Members, between members and citizens, and among citizens when they decide freely, all in accordance with the applicable legislation on arbitration and mediation.

5. Organization: a) Approve the Particular Statutes and their modifications prior to a report from the Superior Council of Colleges regarding their compatibility with the General Statutes of the Colleges of Architects and their Superior Council, submitting them to the report of the Andalusian Council of Official Colleges of Architects for subsequent qualification of legality and registration in the Professional Colleges Registry of Andalusia by the competent Ministry. b) Prepare and approve the annual budgets of income and expenses, as well as their accounts and settlements. d) Issue regulations for internal organization and functioning for the development of these Statutes.”

And the Spanish Agency for Data Protection itself, in its Resolutions of May 24, 2021, Procedure No: PS/00416/2020 and of May 11, 2021, Procedure No: PS/00347/2020 has adopted a different criterion than that followed in the present Sanctioning File before Public Law Corporations.

Thus, the first of the aforementioned Resolutions establishes the following:

“The reported facts specify that through the website <http://www.albuixech.es/wp-content/uploads/> owned by the respondent, personal data of neighbors such as ID number, phone number, disability, economic situation could be accessed, and that despite having stated that a solution would be provided to the incident, the corresponding measures had not been taken as access to the neighbors' data could still be obtained.

Article 83.5 a) of the GDPR (LCEur 2016, 605) considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is sanctionable, in accordance with paragraph 5 of the aforementioned Article 83 of the cited GDPR, "with administrative fines of up to €20,000,000 or, in the case of a company,

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of an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount." On the other hand, the LOPDGDD (RCL 2018, 1629), for the purposes of prescription, in its article 72 states: "Very serious infringements:

1. According to what is established in article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: a) The processing of personal data violating the principles and guarantees established in article 5 of Regulation (EU) 2016/679. (...)" V The violation of article 32 of the GDPR (LCEur 2016, 605) is classified in article 83.4.a) of the aforementioned GDPR as follows:

4. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount: a) the obligations of the controller and the processor under articles 8, 11, 25 to 39, 42, and 43. (...)" For its part, the LOPDGDD (RCL 2018, 1629) in its article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements." And in its article 73, for the purposes of prescription, qualifies as "Infringements considered serious": "According to what is established in article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...) g) The breach, as a result of a lack of due diligence, of the technical and organizational measures that should have been implemented in accordance with the requirements of article 32.1 of Regulation (EU) 2016/679." (...)

VI The proven facts evidence access through the website <http://www.albuixech.es/wp-content/uploads> owned by the respondent to the personal data of residents of the locality (ID number, phone, disability, economic situation, etc.), despite having stated to this AEPD that it had resolved the incident, violating and breaching the technical and organizational measures and the duty of confidentiality of the data. As stated in the background and evidenced in the proven facts of the procedure, it has been established that after a resolution was issued to archive the initial complaint, the complainant filed a voluntary appeal for reconsideration against the resolution issued, expressing their disagreement and stating that the respondent had not taken the appropriate measures since, despite the claims made, access to the data on the municipal website continued, providing along with the appeal a new relevant documentation.

After the analysis and verifications carried out, it was confirmed that there were published documents containing information with personal data.

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personal data that had not been deleted or anonymized, the appeal is upheld and the admission of the complaint presented is agreed upon.

Therefore, the actions of the entity constitute a violation of the principles of confidentiality and data security, regulated in Articles 5.1.f) and 32.1 of the GDPR (LCEur 2016, 605), and classified under Articles 83.5.a) and 83.4.a) of the GDPR. However, in order to clarify the terms of the incident that led to the opening of this sanctioning procedure, the respondent, in a letter dated 18/02/2021, indicated that although initially a WP Content Copy Protection Pro plugin was installed to block access to the documents existing on the website of the Town Hall and to carry out the deletion of files containing personal data published on the aforementioned page, after receiving the agreement to open the procedure, the IT service initially tried to resolve the incident, concluding that the measure adopted

(installing a plugin to block access to the website) was insufficient, as it prevented access to the contents but continued to allow access if the URL of the published files was known.

Therefore, the migration of the entity's website to another server was carried out, which determined that the content that could have been accessed prior to the aforementioned date was deleted, and it was no longer possible to access it from the moment the migration was completed. In order to avoid incidents like the one that occurred, a series of technical measures were adopted on the new website: eliminating access to the wp-content folder and its content through .htaccess; checking WP permissions before serving them using the is-user-logged-in function, to retrieve a file from a subfolder of wp-content, etc. Furthermore, the respondent has stated that they assume their responsibility as a consequence of the infringements committed, although they believe that the efforts made to improve security measures to ensure the security and confidentiality of the personal data for which they are responsible should be taken into account, and that the infringement is not due to inaction or lack of proactivity in complying with data protection regulations.

On the other hand, it should be noted that the respondent provides a screenshot of the webpage where the content of the personal data that caused the complaint should be, and which is currently deleted, making it impossible to access it. VII The LOPDGDD (RCL 2018, 1629) in its Article 77, Applicable regime for certain categories of controllers or processors, establishes the following: In the case at hand, in accordance with the available evidence and without prejudice to what results from the instruction, such conduct could constitute, on the part of the respondent, a possible infringement of the provisions of Article 5.1.f) and 32.1 of the GDPR (LCEur 2016, 605).

It should be noted that the GDPR, without prejudice to what is established in its Article 83, contemplates in its Article 77 the possibility of resorting to the sanction of warning to correct the processing of personal data that do not comply with the regulations.

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adapt to their provisions, when the responsible parties or agents listed in section 1 commit any of the infringements referred to in articles 72 to 74 of this organic law. It is also provided that the resolution issued will establish the measures that should be adopted to cease the conduct, correct the effects of the infringement that has been committed, and ensure compliance with the requirements set forth in articles 5.1.f) and 32.1 of the GDPR, as well as the provision of evidence of compliance.

However, it is considered that the response formulated by the respondent in the written document dated 18/02/2021 has been reasonable, remedying the incident that occurred, and it is not appropriate to urge the adoption of additional measures beyond those already taken by the respondent, which is one of the main purposes of the procedures concerning those entities mentioned in article 77 of the LOPDGDD, having been evidenced the suspension of the entity's website where the information containing the personal data of the residents was displayed, as it has been migrated to another server and measures have been adopted to prevent occurrences similar to those that led to the complaint.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been evidenced, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the TOWN HALL OF ALBUIXECH, with NIF P4601400G, for an infringement of article 5.1.f) of the GDPR (LCEur 2016, 605), classified under article 83.5.a) of the GDPR, a warning sanction, in accordance with article 77 of the LOPDGDD (RCL 2018, 1629).

SECOND: TO IMPOSE on the TOWN HALL OF ALBUIXECH, with NIF P4601400G, for an infringement of article 32.1 of the GDPR (LCEur 2016, 605), classified under article 83.4.a) of the GDPR, a warning sanction, in accordance with article 77 of the LOPDGDD (RCL 2018, 1629). On these resolutions issued by the AEPD itself, the Proposal for Resolution does not comment.

FIFTH.- ABSENCE OF DETERMINATION OF THE TYPE CORRESPONDING TO THE PROPOSED SANCTIONS AND LACK OF MOTIVATION FOR THE DETERMINATION OF THEIR AMOUNT. ALTERNATIVELY AND SUBSIDIARILY,

INVOCATION OF THE PRINCIPLE OF PROPORTIONALITY.

In the Proposal for Resolution, the specific types of the proposed sanctions are not established, nor is there a determination and graduation of their quantum, which results in a lack of motivation contrary to article 35.1 a) of Law 39/2015 of October 1, on Common Administrative Procedure of Public Administrations. The type of infringement committed is not specified (we understand it to be minor) nor is there a justification for why the respective sanctions of 5,000, 8,000, and 1,000 euros are imposed. This can be considered to have generated defenselessness for COAGranada.

Alternatively and subsidiarily, in the event that it is deemed that any of the infringements contained in the C/ Jorge Juan, 6

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Resolution Proposal, we request the application of the principle of proportionality established in the aforementioned article 29.3 of the LRJSP as well as the also invoked article 83.2.c) of the GDPR. The principle of proportionality in its applicative aspect has served in jurisprudence as an important mechanism for judicial control of the exercise of the sanctioning power of the Administration when the norm establishes several possible sanctions for an infringement or indicates a quantitative margin for the determination of the monetary sanction; thus, it has been emphasized that the aforementioned principle of proportionality or the individualization of the sanction to adapt it to the seriousness of the act makes the determination of the sanction a regulated activity and, certainly, it is possible in judicial proceedings not only to confirm or eliminate the imposed sanction but also to modify or reduce it (Cf. Judgment of the National Court of March 11, 2008, Rec. 501/2006). In this regard, it is worth citing the Judgment of the Supreme Court of September 25, 2003 (Rec. 527/1998): “The sanctioning power is not discretionary, and this entails that when a specific infringement has a legally established list of sanctions, the imposition of a more severe or higher sanction than the one established as a minimum must be clearly justified by stating the specific reasons and circumstances that underlie the greater malice or negligence taken into account for choosing that greater punishment. This is imposed by the prohibition of arbitrariness of article 9.3 of the Constitution and also the principle of proportionality included in the guarantees of article 25 of the same constitutional text.”

Therefore, the principle of proportionality implies that, since the sanctioning activity of the Administration is a typically normative application activity, the factors that must govern its application are based on what each sector of the Legal System provides and, very especially, on the concurrent circumstances. As established by the Judgment of the Superior Court of Justice of Castilla y León of Burgos, No. 3/2017 of January 13 (Rec. 80/2016): “It is in this area that the motivation of the specific sanctioning administrative act plays an extraordinarily clarifying role, and to the extent that it must define not only the modifying circumstances of the responsibility assessed and proven but also the specific reason that the Administration understands concurs to impose a specific sanction within the margins granted by law.”

It is for this reason that, by virtue of what is stated in the present Allegations, in the event that it is deemed that there are infringing behaviors and consequent sanctions to be applied, they should be reduced to the maximum possible economic amount, given that considering the concurrent circumstances, the total amount of 14,000 euros seems disproportionate and excessive to us (said with due respect and in strict terms of defense). I REQUEST THE SPANISH AGENCY FOR DATA PROTECTION: That, having presented this document, it be admitted and the allegations made therein be considered. Granada to Madrid, on the date of the electronic signature.

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PROVEN FACTS:

From the actions taken in this procedure and the information and documentation presented by the

parties, the following facts have been established:

First: The complaint submitted to this Agency on 21/12/21 was accompanied by the following relevant documentation for the present procedure:

- Copy of the letter sent by A.A.A., registered ***COLEGIADO.1, to the claimant on 30/08/21, where, among other things, it can be read:

- o “(...) The Governing Board of the College, in its session held on April 11, 2019, adopted, among others, the following agreement: “(AIG) 11.04.19/08.- APPOINT ***PUESTO.1 OF THE OFFICIAL COLLEGE OF ARCHITECTS AS DATA PROTECTION OFFICER FOR THE COLLEGE OF ARCHITECTS.” Therefore, I can inform you that the current Data Protection Officer of the Official College of Architects of Granada is ***PUESTO.1 D. B.B.B. (...).”

- Copy of the “Complaints Sheet” of the Official College of Architects of Granada where it can be read, among other things, the following information regarding the data protection policy:

- o Official College of Architects of Granada. Plaza de San Agustín Nº 3, 18001 Granada. General Secretariat. Area of Attention to Members and Users. The data collected will be part of the COAGRANADA File, with the ***PUESTO.1 being responsible for it, to whom a written request must be addressed in case of exercising the rights of access, opposition, rectification, and cancellation, in accordance with the L.O.P.D.

- Copy of the “Visa Application” addressed to the Dean of the Official College of Architects of Granada, where it can be read, among other things, the following information regarding the data protection policy:

- o In accordance with the provisions of LO 15/1999 on the Protection of Personal Data, the existence of an automated file is reported, whose purpose is to provide the requested service. The Applicants expressly consent to the processing and transfer of the data existing in the automated file to the various Official Colleges of Architects in Spain and to other administrative bodies, for purposes related to the visa function. The signatories may exercise the right of access, rectification, opposition, and cancellation in writing before the C.O.A. of Granada, located at Plaza de San Agustín Nº 3, 18001 Granada, email coagranada@coagranada.org

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Second: On 27/07/22, this Agency confirmed that in the document “Complaints and Claims Sheet for Members,” accessible on the website,

<https://coagranada.es/wp-content/uploads/2021/02/>

[Hoja_queja_reclamaciones_colegiados_V02.pdf](#),

there was only the following statement regarding the protection of personal data:

“Official College of Architects of Granada. Plaza de San Agustín Nº 3, 18001 Granada. General Secretariat. Area of Attention to Members and Users. The data collected will be part of the COAGRANADA File, with the ***PUESTO.1 being responsible for it, to whom a written request must be addressed in case of exercising the rights of access, opposition, rectification, and cancellation, in accordance with the L.O.P.D.”

It was also confirmed that in the document “Complaints and Claims Sheet for Consumers and Users,” accessible on the website,

<https://coagranada.es/wp-content/uploads/2021/02/>

[Hoja_queja_reclamaciones_consumidores_V02.pdf](#),

there was only the following information related to the protection of personal data:

“Official College of Architects of Granada. Plaza de San Agustín Nº 3, 18001 Granada. General Secretariat. Area of Attention to Members and Users. The data collected will be part of the COAGRANADA File, with the ***PUESTO.1 being responsible for it, to whom a written request must be addressed in case of exercising the rights of access, opposition, rectification, and cancellation, in accordance with the L.O.P.D.”

On 10/04/23, this Agency accessed the complaints and claims sheet of the College of Architects of Granada, accessible through the link

<https://coagranada.es/quejas-y-reclamaciones/> confirming that the following message can be read: Official College of Architects of Granada. Plaza de San Agustín Nº3, 18001 Granada. General Secretariat. Area of Attention to Members and Users.

In compliance with the provisions of Regulation (EU) 2016/679, of April 27, 2016, hereinafter RGPD, the Official College of Architects of Granada, located at PLAZA DE SAN AGUSTÍN 3, 18001 GRANADA and NIF nº Q1875003D informs you that the collection and processing of your data through this form aims at the administrative, tax, and accounting management provided for in the legislation of professional colleges and our statutes. Your data may be communicated to the General Council of Colleges

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Architects' officials, related organizations, and the Public Administration without prejudice to other legally provided assignments. Their data will be kept for as long as necessary to fulfill legal obligations. At any time, you may consult additional information regarding this processing or exercise your rights of access, rectification, deletion, and opposition, portability, and limitation of processing by directing your request to the address indicated above or by email to protecciondedatos@coagranada.org. Furthermore, if you believe your right to the protection of personal data has been violated, you may file a complaint with the Spanish Agency for the Protection of Data (www.agpd.es).

Third: Regarding the "Cookie Policy" of the website <https://www.coagranada.es/>, it was initially noted that a non-exempt third-party cookie was being used without the prior consent of the website user. It is noted that this analytical cookie was installed through the insertion of an interactive map from the Institute for Geoenvironmental Health of the "Vivo Sano" Foundation on the page:
<https://coagranada.es/mapa-zonas-radon-en-el-nuevo-cte-db-hs6/>.

On 10/04/23, this Agency accessed the website <https://www.coagranada.es/> again, being aware of the following characteristics regarding its "Cookie Policy":

Upon entering the website for the first time, after clearing the terminal device's browsing history and cookies, without accepting new cookies or taking any action on the website, it was verified that a single cookie "_GRECAPTCHA" is used, whose purpose is to provide risk analysis, such as detecting erroneous and repeated connection attempts.

LEGAL GROUNDS

I.-

Competence:

- Regarding the processing of personal data and the "Privacy Policy": The Director of the Spanish Agency for the Protection of Data is competent to resolve this procedure, by virtue of the powers recognized to each Control Authority by Article 58.2 of the GDPR, and as established in Articles 47, 64.2, and 68.1 of the LOPDGDD.
- Regarding the "Cookie Policy": The Director of the Spanish Agency for the Protection of Data is competent to resolve this procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI Law.

II

Response to the allegations presented regarding the proposed resolution

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a).- Regarding the alleged conflicts of interest of the Data Protection Officer (DPO) in the person of ***POSITION.1 of the Official College of Architects of Granada. There is evidence that, in the session held by the Governing Board of the College of Architects of Granada on 11/04/19, the agreement was adopted to appoint ***POSITION.1 of said College as Data Protection Officer (DPO), and this was expressly specified in the minutes of the session: "(...) Therefore, I can inform you that the current Data Protection Officer of the Official College of Architects of Granada is ***POSITION.1 Mr. B.B.B. (...)". According to the responding party, the decision to appoint a new Data Protection Officer was made on 26/04/22, and this was notified to the Agency in compliance with the requirements of Article 38 of the GDPR.

In the allegations presented by the responding entity, both in the initiation of the file and in the proposed resolution, it essentially argues that there has never been any conflict of interest regarding the appointment of ***POSITION.1 as Data Protection Officer (DPO) at the College of Architects of Granada.

Well, we must begin this section by indicating that, as this Agency has pointed out on several occasions, the greatest novelty presented by the GDPR is the evolution from a model based fundamentally on the control of compliance with current legality to one that rests on the principle of active responsibility, which requires a prior assessment by the controller or processor of the risk that the processing of personal data may generate, in order to adopt the necessary measures based on that assessment.

A fundamental role within the new model of active responsibility will be played by the DPO. Following also in this regard the Explanatory Memorandum of the LOPDGDD, "the figure of the DPO acquires significant importance in the GDPR, and this is reflected in the Organic Law, which starts from the principle that it can have a mandatory or voluntary character, be integrated or not into the organization of the controller or processor, and be either a natural person or a legal entity."

Section 4 of CHAPTER IV of the GDPR - Articles 37 to 39 - regulates in detail the figure of the DPO. Regarding the interpretation and application of these provisions, reference can be made to the guidelines contained in the Article 29 Working Party document "Guidelines on Data Protection Officers" - WP243, last revised and adopted on April 5, 2017.

This regulation is complemented by the provisions in CHAPTER III of TITLE V of the LOPDGDD, in which Articles 34 to 37 contain some specialties directly applicable to our internal law. Specifically, the designation of the data protection officer is included in Article 37 of the GDPR, with the scope of subjects obliged to its appointment being expanded in Article 34 of the LOPDGDD.

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From the above, it can be inferred that the requirement for the appointment of a DPO (Data Protection Officer) should not be interpreted merely as a formality, but must comply with the requirements established in the applicable legal norms. Consequently, it is necessary to conduct a brief analysis of the functions and resources that the DPO must have. Thus, it should start from the important functions assigned by Article 39.1 of the GDPR:

"1. The Data Protection Officer shall have at least the following functions:

- a) to inform and advise the controller or the processor and the employees who are involved in processing of their obligations under this Regulation and under other Union or Member State data protection provisions;
- b) to monitor compliance with the provisions of this Regulation, other Union or Member State data protection provisions, and the policies of the controller or the processor in relation to the protection of personal data, including the allocation of responsibilities, awareness-raising and training of staff involved in processing operations, and the relevant audits;
- c) to provide advice as requested regarding the impact assessment related to data protection and to monitor its implementation in accordance with Article 35;
- d) to cooperate with the supervisory authority;

e) to act as a contact point for the supervisory authority on issues related to processing, including prior consultation referred to in Article 36, and to consult, where appropriate, on any other matter.”

These are, therefore, advisory and supervisory functions aimed at ensuring adequate compliance with the regulations on personal data protection, with Article 39.2 stating that “The Data Protection Officer shall perform their tasks with due regard to the risks associated with processing operations, taking into account the nature, scope, context, and purposes of the processing.”

Furthermore, Article 38.1 clearly establishes that: “The controller and the processor shall ensure that the Data Protection Officer is involved properly and in a timely manner in all issues related to the protection of personal data.”

In addition to the important advisory functions assigned to the DPO, including cases where it is necessary to carry out an impact assessment due to high-risk processing, and specifying the supervisory functions, Article 36 of the LOPDGDD (Organic Law on Data Protection and Guarantee of Digital Rights) provides that: “The DPO may inspect the procedures related to the subject matter of this organic law and issue recommendations within the scope of their competencies,” that “In the exercise of their functions, the Data Protection Officer shall have access to personal data and processing operations, and the controller or processor may not invoke any duty of confidentiality or secrecy, including that provided for in Article 5 of this organic law, to oppose this access,” and that, “When the Data Protection Officer identifies a relevant breach in data protection, they shall document it and communicate it immediately to the management and administration bodies of the controller or the processor.”

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On the other hand, Article 39.1.e) of the GDPR also establishes as functions of the DPO “to act as a contact point for the supervisory authority on issues related to processing, including the prior consultation referred to in Article 36, and to carry out consultations, where appropriate, on any other matter.”

To adequately fulfill these duties, the GDPR requires certain training requirements for the DPO, and that they are provided with the necessary resources. The training requirements are referred to in Article 37.5 of the GDPR, which states that “The data protection officer shall be designated based on their professional qualities and, in particular, their specialized knowledge of law and practice in the field of data protection and their ability to perform the tasks specified in Article 39.” Furthermore, Article 35 of the LOPDGDD adds that “Compliance with the requirements established in Article 37.5 of Regulation (EU) 2016/679 for the designation of the data protection officer, whether a natural or legal person, may be demonstrated, among other means, through voluntary certification mechanisms that particularly take into account the obtaining of a university degree that certifies specialized knowledge in law and practice in the field of data protection.”

In order to better interpret and apply these provisions, one may refer to the guidelines contained in the Article 29 Working Party document “Guidelines on Data Protection Officers” -WP243-, last reviewed and adopted on April 5, 2017, which, in relation to the knowledge and skills of the DPO, points out the following:

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Level of knowledge: The required level of knowledge is not strictly defined, but it must be commensurate with the sensitivity, complexity, and volume of the data that an organization processes. For example, when the data processing activity is particularly complex or involves a large amount of sensitive data, the DPO may require a higher level of knowledge and support. There is also a difference depending on whether the organization systematically transfers personal data outside the European Union or if such transfers are occasional.

Thus, the DPO must be chosen carefully, taking into account the data protection issues that arise within the organization.

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Professional qualities: It should be noted that, although Article 37, paragraph 5, does not specify the professional qualities to be considered when designating the DPO, an important factor is that they have knowledge of national and European legislation and practices in the field of data protection and a deep understanding of the GDPR.

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Ability to perform their functions: The ability of the DPO to perform their functions should be interpreted both in reference to their personal qualities and knowledge as well as their position within the organization.

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Personal qualities must include, for example, integrity and a high level of professional ethics; the primary concern of the DPO must be to enable compliance with the GDPR.

The DPO plays a fundamental role in promoting a culture of data protection within the organization and contributes to the implementation of essential elements of the GDPR, such as the principles related to data processing, the rights of data subjects, data protection by design and by default, the record of processing activities, processing security, and the notification and communication of data security breaches.

On the other hand, the need to provide the DPO with the necessary resources to perform their functions is established as an obligation of the controller in Article 38.2 of the GDPR: “The controller and the processor shall support the data protection officer in performing the tasks mentioned in Article 39, providing the necessary resources for the performance of those tasks and access to personal data and processing operations, and for the maintenance of their specialized knowledge.”

The following aspects must be particularly considered:

- Active support for the DPO’s work by senior management (at the board level).
- Sufficient time for the DPO to fulfill their functions, which is particularly important when a part-time internal DPO is appointed or when an external DPO carries out data protection in addition to other obligations.

Otherwise, the conflict between priorities could lead to neglect of the DPO's obligations. It is essential to have enough time dedicated to the DPO tasks. It is advisable to establish a percentage of time for the DPO's specific work when it is not carried out full-time. It is also advisable to determine the time necessary to perform the work, the appropriate level of priority for the DPO's functions, and for the DPO (or the organization) to draft a work plan.

- Adequate support in terms of financial resources, infrastructure (premises, facilities, equipment), and personnel, as required.
- Therefore, it is essential that DPOs meet the training and independence requirements that allow them to adequately perform the functions assigned to them by the GDPR, as noted in Recital 97 of the GDPR, “The level of specialized knowledge required should be determined, in particular, by reference to the data processing operations carried out and the protection required for the personal data processed by the controller or processor.”

In this way, and as long as their independence is adequately guaranteed, what is relevant is that the functions assigned to the DPO can be performed effectively, taking into account the criterion of availability, which is fundamental to ensure that data subjects can easily contact the DPO (according to Article 38.4 of the GDPR, “data subjects may contact the DPO”).

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data protection officer regarding all matters related to the processing of your personal data and the exercise of your rights under this Regulation.”

In conclusion, these functions can be effectively carried out if the training requirements are met when appointing the DPO and if they are provided with the necessary resources, including, as noted by the Article 29 Working Party, a DPO team (a DPO and their staff), which must be proportional to the size and structure of the organization, as well as to the sensitivity, complexity, and volume of the data that an organization processes, ensuring the availability of the DPO so that interested parties can contact them, as well as communicate with the data protection authorities.

Focusing now on issues related to the independence and potential conflicts of interest of the officer, the legal norms regulating the position of the officer in their relationships with the data controller and/or the data processor must be adhered to. Thus, Article 36 of the LOPDDD provides the following:

“Position of the Data Protection Officer”

1. The Data Protection Officer will act as the interlocutor of the data controller or processor before the Spanish Agency for Data Protection and the regional data protection authorities. The officer may inspect the procedures related to the subject matter of this organic law and issue recommendations within the scope of their competencies.

2. When it comes to a natural person integrated into the organization of the data controller or processor, the Data Protection Officer may not be removed or sanctioned by the controller or processor for performing their functions unless they have acted with intent or gross negligence in their exercise.

The independence of the Data Protection Officer within the organization will be guaranteed, and any conflict of interest must be avoided.” For its part, Article 38.3 of the GDPR, when regulating the position of the Data Protection Officer, emphasizes their independence by stating that the controller and the processor will ensure that the Data Protection Officer does not receive any instructions regarding the performance of these functions, and may not be dismissed or sanctioned by the controller or processor for performing their functions, being accountable directly to the highest hierarchical level of the controller or processor.

Furthermore, according to the Article 29 Working Party document “Guidelines on Data Protection Officers,” last reviewed and adopted on April 5, 2017 -WP243-, the element related to the independence of the DPO must be taken into account in their appointment. Thus, Article 38.3 of the GDPR establishes basic guarantees for DPOs to act independently within the organization in which they provide their services, including that they “do not receive any instructions regarding the exercise of their tasks.”

It is important to note that those obligated to comply with the GDPR are the controller or the processor, so that if they make decisions contrary to the

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According to the norm and the advice provided by the delegate, the delegate must be given the opportunity to clearly express their dissenting opinion regarding such decisions. The aforementioned Article 38.3 also states that data protection delegates “must not be dismissed or penalized by the controller or the processor for carrying out their functions,” which reinforces their autonomy and independence. They could, however, be dismissed or sanctioned in accordance with the applicable contractual, labor, or criminal legislation of each country, for reasons unrelated to the performance of their functions.

Regarding the potential conflict of interest of the delegate, the guidelines on data protection delegates adopted by the Article 29 Data Protection Working Party, -WP243-, state the following: “3.5. Conflict of interests The article 38, paragraph 6, allows DPOs to ‘perform other functions and tasks.’ However, it requires the organization to ensure that ‘such functions and tasks do not give rise to a conflict of interests.’

The absence of a conflict of interest is closely linked to the requirement to act independently. This means, in particular, that the DPO cannot hold a position in the organization that leads them to determine the purposes and means of processing personal data. On the other hand, although DPOs

may have other functions, they may only be assigned other tasks and responsibilities if these do not lead to conflicts of interest. Due to the specific organizational structure of each organization, this must be considered on a case-by-case basis.

As a general rule, conflicting positions within an organization may include senior management positions (such as CEO, COO, CFO, Chief Medical Officer, head of marketing, head of human resources, or head of the IT department) but also other lower positions in the organizational structure if such positions lead to the determination of the purposes and means of processing.

Furthermore, a conflict of interest may also arise, for example, if a DPO is asked to represent the controller or processor in court in cases related to data protection.

From the above, it can be inferred that, regardless of the formula adopted for their appointment, the designation of the data protection delegate must respond to the requirements derived from the principle of independence in the performance of their activity, ensuring that the performance of their functions and tasks does not give rise to a conflict of interest. The provision of a data protection delegate in public or private organizations requires that the selection complies with the legally established requirements and, in particular, that specialized knowledge in data protection law and practice as indicated by the GDPR is demonstrated.

Moreover, the formula adopted for the appointment of DPOs will depend on the decision made by the entity in which they perform their functions, as a consequence of its organizational autonomy.

However, issues related to the autonomy of the organizations in which the delegates are framed, clearly derived from the regulations analyzed in this report, cannot be an obstacle for the

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necessary guarantee of the independence of the data protection officer - pursuant to Article 38 of the GDPR - within the framework of the internal and external legal relationships maintained in the performance of their functions.

Thus, in any case, it will be required, as provided in Article 36 of the LOPDGDD, that (i) when it concerns a natural person integrated into the organization of the data controller or processor, the data protection officer cannot be removed or sanctioned by the controller or processor for performing their functions unless they have acted with intent or gross negligence in their exercise, (ii) the independence of the data protection officer within the organization is guaranteed, avoiding any conflict of interest, and (iii) when the data protection officer perceives the existence of a relevant breach in data protection, they document and communicate it immediately to the governing and management bodies of the controller or processor.

In short, while Section 4 of CHAPTER IV of the GDPR - Articles 37 to 39 - provides broad possibilities for the appointment and framing of data protection officers within the organizations to which their designation refers, it is equally true that this autonomy must be reconciled with the requirements derived from the principle of independence of the officer, ensuring that the exercise of their functions does not lead to situations of incompatibility or conflict of interest.

In the legal norms regulating the figure of the data protection officer, the requirement of their independence is configured as inherent to the performance of their functions.

In the case at hand, the Governing Board of the College of Architects of Granada, in a session held on 11/04/19, adopted the agreement to appoint ***POSITION.1 of said College as the Data Protection Officer (DPO), and this is certified in the document sent by the College to the complainant on 30/08/21: "(...) Therefore, I can inform you that, currently, the Data Protection Officer of the Official College of Architects of Granada is your ***POSITION.1 Mr. B.B.B. (...)"

In the Order of February 20, 2018, which approves the modification of the Statutes of the Official College of Architects of Granada, Articles 13 and 14 establish the functions and composition of its Governing Board; in Article 15, the functions of the Permanent Commission; and in Article 17, the specific functions of ***POSITION.1 of the College.

As we indicated earlier, Section 4 of CHAPTER IV of the GDPR - Articles 37 to 39 - regulates in detail

the figure of the DPO, and regarding the interpretation and application of these provisions, one can refer to the guidelines contained in the Article 29 Working Group document "Guidelines on Data Protection Officers" - WP243 - last reviewed and adopted on April 5, 2017:

(https://ec.europa.eu/newsroom/article29/itemdetail.cfm?item_id=612048).

This regulation is complemented by the provisions in CHAPTER III of TITLE V of the LOPDGDD, in which Articles 34 to 37 contain some specificities directly applicable to our domestic law. Thus, Article 36

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LOPDGDD guarantees the independence of the DPO within the organization, and any conflict of interest must be avoided.

For its part, Article 38.3 of the GDPR, in regulating the position of the DPO, emphasizes their independence by stating that the controller and the processor shall ensure that the data protection officer does not receive any instructions regarding the performance of their functions, and they cannot be dismissed or sanctioned by the controller or the processor for performing their duties, being accountable directly to the highest hierarchical level of the controller or processor.

In the specific case at hand, the functions as ***POSITION.1 of the College of Architects of Granada that incur in a conflict of interest are all those in which they perform activities or advise as ***POSITION.1 on matters that may be affected by the data protection of the members, staff serving the College, or its users, and must also carry out the functions inherent to a DPO.

If we consider the specific functions of ***POSITION.1 of the Official College of Architects (Article 17) that may be affected by data protection, we find that they have the authority to: 2. Provisionally resolve the admission of new members in accordance with the provisions of these Particular Statutes. 3. Receive and process all requests and communications directed to the College and its different Bodies, reporting them to the relevant parties. 4. Issue the requested certifications that must be issued and maintain the register book of members. 5. Formulate annually the lists of members in their different versions. These lists must be prepared annually within the deadlines set forth in these Particular Statutes for election purposes. 6. Make notifications of new memberships and cancellations. 7. Maintain the minutes books of the meetings of the General Assembly of members, Governing Board, and Permanent Commission, and communicate the agreements, monitoring their compliance. Furthermore, ***POSITION.1 is a natural member of the Governing Board, which has the following functions (Article 13.2) that may be affected by data protection: c) Resolve requests for the incorporation of new members, cancellations of memberships, and the suspension of membership services and the status of member. e) Collect, distribute, and manage the funds of the College, in accordance with the provisions in the Title on Economic and Asset Regime of these Particular Statutes. k) Exercise disciplinary functions and adopt precautionary measures, initiating, ex officio or by virtue of a complaint, disciplinary proceedings, in which they will issue the corresponding Resolution.

Also, as a member of the Permanent Commission of the Official College (Article 15), which has the following functions that may be affected by data protection: 1. Implement the guidelines issued by the Governing Board. 2. Propose to the Governing Board any acts that are a consequence of the competencies it has assumed. 3. Adopt the necessary measures for the compliance with the agreements of the Governing Board. 4. Organize the services of the College's offices.

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To elaborate further, it should be noted that the ***POSITION.1 of this official college is part of these two collegiate bodies of direction and administration, which determine the purposes and means of

processing, with voice and vote, in such a way that, in addition to its advisory role, its will shapes that of the collegiate body.

Therefore, considering the functions that, according to the GDPR, correspond to the DPO and the functions that, according to the Order of February 20, 2018, which approves the modification of the Statutes of the Official College of Architects of Granada, correspond to the Governing Board and the Permanent Commission of the Official College of Architects of Granada, in addition to those inherent to the position of ***POSITION.1, the existence of a conflict of interest on the part of the ***POSITION.1 of the Official College of Architects of Granada to act as DPO of said Organization is evident, from the time he was appointed as DPO on 04/11/19 until 04/26/22 when the decision to replace him was made.

b).- Regarding the alleged lack of information in the forms concerning "complaints and claims," related to the processing of personal data obtained therein.

As this Agency was able to verify on 07/27/22, when accessing the document "Complaints and Claims Form for Members" via the link:

https://coagranada.es/wp-content/uploads/2021/02/Hoja_queja_reclamaciones_colegiados_V02.pdf it can be read, at the bottom of the same, below the form, the following legend:

"Official College of Architects of Granada. Plaza de San Agustín Nº 3, 18001 Granada. General Secretariat. Area of Attention to Members and Users.

The data collected will be part of the COAGRANADA File, with the ***POSITION.1 being responsible for it, to whom a written request must be directed in case of exercising the rights of access, opposition, rectification, and cancellation, in accordance with the L.O.P.D."

It was also verified on that same day, 07/27/22, that in the document "Complaints and Claims Form for Consumers and Users" accessible via the link:

https://coagranada.es/wp-content/uploads/2021/02/Hoja_queja_reclamaciones_consumidores_V02.pdf

there was the following legend:

"Official College of Architects of Granada. Plaza de San Agustín Nº 3, 18001 Granada. General Secretariat. Area of Attention to Members and Users.

The data collected will be part of the COAGRANADA File, with the ***POSITION.1 being responsible for it, to whom a written request must be directed in case of exercising the rights of access, opposition, rectification, and cancellation, in accordance with the L.O.P.D."

In the written allegations to the initiation of the file, submitted by the entity being claimed before this Agency on 09/29/22, it was indicated, among other things, that: "(...) Regarding the sanction referred to by the violation of art. 13 GDPR, we must record the application of the proposed corrective measure and that all the information referred to in art. 13 of the GDPR has been incorporated into the forms available to both Members and the general public, so we request that this measure be taken into account under art. 83.2.c) of the GDPR (...)".

In the verification carried out by this Agency after the written allegations regarding the complaints and claims forms of the College of Architects of Granada, accessible via the link

<https://coagranada.es/quejas-y-reclamaciones/>, the following message was requested to be read:

Official College of Architects of Granada. Plaza de San Agustín Nº3, 18001 Granada. General Secretariat. Area of Attention to Members and Users.

In compliance with the provisions of Regulation EU 2016/679, of April 27, 2016, hereinafter GDPR, the Official College of Architects of Granada with address at PLAZA DE SAN AGUSTÍN 3, 18001 GRANADA and NIF nº Q1875003D informs you that the collection and processing of your data through this form aims at the administrative, tax, and accounting management provided for in the legislation of professional colleges and our statutes.

Your data may be communicated to the General Council of Official Colleges of Architects, related bodies, and the Public Administration without prejudice to other legally provided transfers. Your data will be kept for the time necessary to comply with legal obligations. At any time, you may consult additional information regarding this processing or exercise the rights of access, rectification, deletion, and opposition, portability, and limitation of processing by directing your request to the address indicated above or by email to protecciondedatos@coagranada.org. Likewise, if you consider your

right to personal data protection has been violated, you may file a complaint with the Spanish Agency for Data Protection (www.aepd.es).

Well, Article 12.1 of the GDPR establishes, regarding the requirements that the information provided by the data controller must meet for the interested parties, the following:

“1. The data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 relating to processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means (...).”

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And for its part, Article 13 of the GDPR details the information that must be provided to the data subject when the data is collected directly from them, establishing the following:

“1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the following information at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.”

Therefore, it is evident that, at a minimum, from the time the claimant submitted the complaint on 21/12/21 until 29/09/22, the date on which the responding party submitted their allegations to the initiation indicating that they had resolved the deficiencies observed by this Agency, there is a violation

of what is established in the GDPR regarding the information that must be provided to users when their personal data is obtained from them, such as the identity and contact details of the controller.

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the purposes of processing to which the personal data is destined and the legal basis for the processing; the possible recipients or categories of recipients of the personal data, where applicable; the period during which the personal data will be retained or, when this is not possible, the criteria used to determine this period or the right to lodge a complaint with a supervisory authority, for failing to comply with the provisions established in the current regulations on data protection.

c).- Regarding the Cookie Policy of the website

<https://www.coagranada.es/>

On 27/07/22, it was verified that upon entering the website of the Official College of Architects of Granada <https://www.coagranada.es/>, two cookies were used: "PHPSESSID" and another from Google, "_GRECAPTCHA".

According to Opinion 4/2012 of WP 194 on the exemption from the consent requirement for cookies, the exemption applied to authentication cookies could apply to others specifically introduced to enhance the security of the requested service, for example, those cookies whose purpose is to detect erroneous and repeated attempts to connect to a website or to protect the connection system against abuses, such as in the case of "_GRECAPTCHA".

However, after navigating the website, it was observed that non-exempt third-party cookies were installed, which were not disclosed in the policies. It is noted that these analytical cookies are installed through the insertion of an interactive map from the Institute for Geoenvironmental Health of the Vivo Sano Foundation on the page: <https://coagranada.es/mapa-zonas-radon-en-el-nuevo-cte-db-hs6/>.

In subsequent checks carried out by this Agency regarding the "Cookie Policy" of the website <https://www.coagranada.es/>, on 10/04/23 and the last one on 03/05/23, it was observed that the website only uses the cookie "_GRECAPTCHA", established to provide its risk analysis against erroneous and repeated attempts to connect to the website.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempt cookies would be the "User Input Cookies" (those used to fill out forms, or for managing a shopping cart); authentication or user identification cookies (session); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; load balancing session cookies; user interface customization cookies; and some plug-in cookies for sharing social content. These cookies would be excluded from the scope of application of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. On the contrary, it will be necessary to inform and obtain the prior consent of the user before using any other type of cookies, both first-party and third-party, session or persistent.

Therefore, the use of non-exempt third-party cookies, during the time they were active, at least since 27/07/22, date of the

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The detection by this Agency of such cookies until 10/04/23 constitutes, on the part of the respondent, the commission of the infringement of Article 22.2 of the LSSI.

Regarding the application of the principle of proportionality alleged by the responding entity, it should be noted that it is not applicable since, in the present case, the sanctioning file for the infringement of Article 22.2 of the LSSI only considered the existence of intent as an aggravating factor, an expression interpreted as equivalent to the degree of culpability in accordance with the Judgment of the National

Court of 12/11/07 in Case No. 351/2006.

d).- On the possible application of Article 77.2 of the LOPDGDD in the present case.

Article 83.7 of the GDPR establishes that: "Without prejudice to the corrective powers of the supervisory authorities (...), each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

In application of the aforementioned article, Article 77 of the LOPDGDD, regarding the regime applicable to certain categories of controllers or processors, establishes, regarding the regime applicable to Entities that form the Public Administration, the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or processors: (...)

g) Public law corporations when the purposes of the processing relate to the exercise of public law powers.

Before entering into its analysis, it must be taken into account that Professional Associations are public law corporations, protected by law and recognized by the State, with their own legal personality and full capacity to fulfill their purposes.

Despite being classified as a public law corporation, it is necessary to keep in mind that it can also exercise functions of a private legal nature, depending on whether the Association is acting in the exercise of public functions or, on the contrary, in the exercise of private functions.

Before proceeding, it is important to clarify the error in referencing Law 7/2006, of May 31, when it should have actually referenced Law 2/1974, of February 13, on Professional Associations, although this Law was already referenced and included in the phrase "(...) or other regulations."

Well, even though professional associations are public law corporations, protected by law and recognized by the State, with their own legal personality and full capacity to fulfill their purposes (Article 1.1 of Law 2/1974, of February 13, on Professional Associations), they have a mixed nature that implies that, indeed, the Associations develop public functions, but they also carry out activities and provide services to their members under private law.

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It is true that the legal regime of these organizations is necessarily complex since it lacks uniformity and must adapt to the nature (public or private) of the activity carried out by the College at any given moment. The public functions to be exercised by Professional Colleges are essentially the regulation of professional practice, which includes the exercise of sanctioning power and the control of compliance with ethical standards. In the absence of such public functions, it is not appropriate to speak of Colleges but rather of private associations dedicated to achieving goals aimed exclusively at the benefit of their members.

As we have already indicated in section a).- "On the alleged conflicts of interest of the Data Protection Delegate (DPD) in the person of ***POSITION.1 of the Official College of Architects of Granada," the specific functions of ***POSITION.1 of the Official College of Architects (Article 17) that may be affected by data protection, we find that it has the authority to:

2. Provisionally resolve the admission of new members in accordance with the provisions of these Particular Statutes.

3. Receive and process all requests and communications addressed to the College and its different Bodies, reporting them to the relevant parties.

4. Issue the requested certifications that must be issued and maintain the register book of members.

5. Formulate annually the lists of members in their various versions. These lists must be prepared annually within the deadlines set forth in these Particular Statutes for election purposes.

6. Make notifications of new memberships and cancellations.

7. Keep the minutes books of the meetings of the General Assembly of members, the Governing Board, and the Permanent Commission, and communicate the agreements, monitoring their

compliance.

Furthermore, ***POSITION.1 is a natural member of the Governing Board, which has the following functions (Article 13.2), which may be affected by data protection:

- c) Resolve requests for the incorporation of new members, cancellations of memberships, and the suspension of membership services and the status of being a member.
- e) Collect, distribute, and manage the funds of the College, in accordance with the provisions in the Title on Economic and Asset Regime of these Particular Statutes.
- k) Exercise disciplinary functions and adopt precautionary measures, initiating, ex officio or by virtue of a complaint, disciplinary proceedings, in which it will issue the corresponding Resolution.

Moreover, it is worth noting that, in this specific case, the claim is limited to "the privacy of the members' data and therefore their rights," which goes beyond public functions.

Therefore, in the present case, the detected conflict of interest in the appointment of ***POSITION.1 of the College as Data Protection Delegate, as we have already outlined in section a).- "On the alleged conflicts of interest of the Data Protection Delegate (DPD) in the person of ***POSITION.1 of the Official College of Architects of Granada," and the lack of information provided in the College's complaint forms regarding the processing of personal data of the members, is evident.

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individual users do not fit into any of the public functions attributed to them by the regulations, so the provisions of Article 77 of the LOPDGDD and regarding the "Cookie Policy" would not apply, as they are governed by the LSSI, and therefore Article 77 of the LOPDGDD would not be applicable either.

e).- Regarding the allegations presented concerning the Resolutions of this Agency dated May 24, 2021, Procedure No: PS/00416/2020, and May 11, 2021, Procedure No: PS/00347/2020

In the resolution of PS/00416/2020, the following can be read verbatim:

"(...) It should be noted that the GDPR, without prejudice to the provisions of its Article 83, contemplates in its Article 77 the possibility of resorting to the sanction of warning to correct personal data processing that does not comply with its provisions, when the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law (...). However, as we have indicated previously, the conflict of interest detected in the appointment of ***POSITION.1 of the College as Data Protection Delegate, and the lack of information provided in the complaint forms of the College regarding the processing of personal data of individual users, do not fit into any of the public functions attributed to them by the regulations, so the provisions of Article 77 of the LOPDGDD would not apply in this case either.

d).-

Regarding the absence of determination of the corresponding type of proposed sanctions and lack of motivation for the determination of their amount, alternatively and subsidiarily, invocation of the principle of proportionality.

Infringements in the field of data protection are classified in paragraphs 4, 5, and 6 of Article 83 of the GDPR. This classification is by reference, fully accepted by our Constitutional Court. In this sense, Article 71 of the LOPDGDD also refers to them by stating that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

In this regard, the Opinion of the Council of State dated October 26, 2017, regarding the Draft Organic Law on Personal Data Protection states that "The European Regulation does classify, even if it does so in a generic sense, the behaviors constituting an infringement: indeed, paragraphs 4, 5, and 6 of its Article 83 contain a catalog of infringements for violation of the provisions of the European norm indicated in such paragraphs.

The infringements established in Articles 72, 73, and 74 of the LOPDGDD are only for the purposes of prescription, as stated at the beginning of each of these provisions. This necessity arose in our State since there is no reference in the GDPR regarding the prescription of infringements, given that this

legal institute is not common to all EU Member States.

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We must start from the premise that the GDPR is a directly applicable legal norm, which has been developed by the LOPDGDD only in those aspects permitted by the former. This is evident in the preamble of the LOPDGDD regarding the statute of limitations when it states that “The categorization of infringements is introduced solely for the purpose of determining the limitation periods, with the description of typical behaviors having the sole objective of exemplifying some of the sanctionable acts that should be understood as included within the general types established in the European norm. The organic law regulates the cases of interruption of the limitation period based on the constitutional requirement of knowledge of the facts attributed to the person.”

It is the application and interpretation of the GDPR, and not the LOPDGDD, that determines the severity of an infringement considering a series of conditions provided therein.

As we can see, there is no classification in the GDPR of very serious, serious, or minor infringements typical of the Spanish legal system, nor can it be deduced from its wording that the violation of the provisions of Article 83.4 of the GDPR corresponds to minor infringements and the provisions of Article 83.5 or Article 83.6 of the GDPR correspond to serious infringements.

Thus, Recital 148 speaks of serious infringements in contrast to minor ones when it states that, “In the case of a minor infringement, or if the fine that would likely be imposed constitutes a disproportionate burden for a natural person, instead of a sanction by means of a fine, a warning may be imposed. However, special attention must be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damages suffered, the degree of responsibility, or any relevant prior infringement, the manner in which the supervisory authority became aware of the infringement, compliance with measures ordered against the responsible party or processor, adherence to codes of conduct, and any other aggravating or mitigating circumstances.” For all these reasons, the severity of an infringement is determined for the purposes of the GDPR and with the elements provided by it.

Once again, we bring to the fore the aforementioned Opinion of the Council of State, which explains this in great detail: “On the other hand, the European Regulation does not distinguish, when setting the amount of sanctions, between very serious, serious, and minor infringements, as stated in the preamble of the Draft Bill. In reality, the European norm merely distinguishes, based on the maximum quantitative limit of the fine to be imposed, between certain infringements that can be sanctioned 'with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to 2% at most of the total annual global turnover of the previous financial year' (paragraph 4 of Article 83), and other infringements that can be sanctioned 'with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year' (paragraphs 5 and 6 of Article 83). From this distinction, it can be inferred that, for European Union law, the infringements classified in paragraphs 5 and 6 of Article 83 can reach...”

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to involve a similar and greater severity than those contemplated in paragraph 4 of the same Article 83 of the European Regulation. The European rule thus limits itself to establishing two categories of infringements based on their severity.

The limitation periods for infringements are not provided for in the European Regulation and, therefore, there is a tacit but peaceful understanding that Member States have the competence to establish such periods. The determination of such periods must be based, as is well known, on the severity of the infringement.

Well, the infringements provided for in paragraph 4 of Article 83, on the one hand, and in paragraphs 5 and 6 of Article 83 of the European Regulation, on the other, have a different maximum limit—€10,000,000 or 2% of the turnover in the first case, €20,000,000 or 4% of the turnover in the second—but the same minimum limit, which in both cases is €1. The existence of such broad quantitative margins indicates that the infringements of Article 83, whether those of paragraph 4 or those of paragraphs 5 and 6, can be of very different magnitude and that, for this reason, they cannot have the same limitation period; those infringements that, due to their severity, are close to the upper quantitative limit cannot have the same limitation period as those that, due to their minor nature, are closer to the lower quantitative limit.

In such circumstances, the establishment of limitation periods would not be satisfactorily resolved by applying a longer period to the infringements of the provisions mentioned in paragraphs 5 and 6 of Article 83 than to the infringements of the provisions mentioned in paragraph 4 of Article 83, given that the infringements contemplated by both provisions, in the case of being minor, would require a shorter limitation period.

From this perspective and solely for the purpose of establishing their limitation period, a distinction has been made between "merely formal infringements" and "substantial violations" of such provisions, considering the former as "minor infringements" with a limitation period of one year and the latter as "serious" and "very serious infringements" with limitation periods of two and three years respectively. In the opinion of the Council of State, this classification of infringements, to the extent that it is made solely for the purpose of determining limitation periods for infringements not provided for in the European Regulation, cannot be understood as contrary to the provisions of the European rule. This classification, however, does not have significance regarding the amount of the fines. The determination of the amount of fines to be imposed for the violation of the provisions mentioned in paragraphs 4, 5, and 6 of Article 83 of the European Regulation is, according to the European rule, the responsibility of the supervisory authorities, in accordance with the grading criteria established in paragraph 2 of this same provision, among which is the "nature" or "severity" of the infringement. Within the quantitative limits established by the European Regulation, the supervisory authorities, taking into account the greater or lesser severity of the infringement, must set the amount of the fines. Certainly, the margins available to the supervisory authorities are very broad—from €1 to €10,000,000 for infringements of the provisions mentioned in paragraph 4 of Article 83 and from €1 to €20,000,000.

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50/60 euros for violations of the provisions mentioned in sections 5 and 6-, which grants such authorities a high degree of discretion, much greater than is usually customary in countries of our legal tradition.

In any case, this is the model desired by the European Regulation, which is why the distinction between minor, serious, and very serious violations contemplated in the Draft Bill cannot have consequences in determining the maximum amount for minor violations, as the determination of their amount must be made by the supervisory authorities, according to the circumstances of the specific case, within the limits set in that regulation.

Thus, the classification of violations for the purposes of the prescription of the LOPDGDD has no bearing on the determination of the severity of the violation for the purposes of the GDPR nor regarding the imposition of the corresponding fines.

Well, in the proposed resolution of the present file, notified to the interested party on 10/04/23, the facts considered proven and their exact legal qualification were motivated in the section "PROVEN FACTS" AND in FD II of the response to the allegations, the following was indicated:

In point a).- Regarding the alleged conflicts of interest of the Data Protection Officer (DPO) in the person of ***POSITION.1 of the Official College of Architects of Granada.

The violation was determined:

Therefore, considering the functions that, according to the GDPR, correspond to the DPO and the functions that, according to the Order of February 20, 2018, which approves the modification of the Statutes of the Official College of Architects of Granada, correspond to the Governing Board and the Permanent Commission of the Official College of Architects of Granada, in addition to those inherent to the position of ***POSITION.1, the existence of a conflict of interest on the part of ***POSITION.1 of the Official College of Architects of Granada to act as DPO of that Organization is evident, leading to a violation of Article 38.6) of the GDPR.

The responsible party and the proposed sanction were identified:

“FIRST: That the Director of the Spanish Agency for Data Protection sanction the OFFICIAL COLLEGE OF ARCHITECTS OF GRANADA, holder of the website, <https://www.coagranada.es/>, for:

Violation of Article 38.6 of the GDPR, due to the conflict of interest detected in the appointment of ***POSITION.1 of the College as Data Protection Officer, with a sanction of 5,000 euros (five thousand euros) (...)

In accordance with the provisions of the GDPR, the amount of the fine was assessed at 5,000 euros, which is in the lower range of possible sanctions, thus complying with the provisions of Article 83.1 of the GDPR: “Each supervisory authority...

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will ensure that the imposition of administrative fines under this article for the violations of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

On the other hand, Article 83.2 of the GDPR states that “administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:” (the underlining is ours).

This means that the assessment of the sanction as a whole takes into account each and every one of the concurrent circumstances in the specific case that are provided for in the aforementioned provision.

In this same line, the jurisprudence speaks when referring to the principle of proportionality, a principle “fundamental that underlies and presides over the process of grading sanctions and implies, in legal terms, ‘its adequacy to the seriousness of the act constituting the infringement’ as provided for in Article 29.3 of Law 40/2015, on the Legal Regime of the Public Sector, given that every sanction must be determined in accordance with the entity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the act.” (Supreme Court rulings of December 3, 2008 (rec. 6602/2004) and April 12, 2012 (rec. 5149/2009) and National Court ruling of May 5, 2021 (rec. 1437/2020), among others).

Thus, the ruling of the Third Chamber of the Supreme Court, dated May 27, 2003 (rec. 3725/1999), indicates that “Proportionality, specifically belonging to the field of sanctions, constitutes one of the principles that govern in Administrative Sanctioning Law, and represents a control instrument for the exercise of the sanctioning power by the Administration even within the margins that, in principle, the applicable norm indicates for such exercise. It certainly involves a concept that is difficult to determine a priori, but which tends to adjust the sanction, by establishing its specific grading within the indicated possible margins, to the seriousness of the act constituting the infringement, both in its aspect of unlawfulness and culpability, weighing in its entirety the objective and subjective circumstances that make up the sanctionable factual presumption (...).”

We can also cite in this regard the ruling of the Supreme Court 713/2019, of May 29 (rec. 1857/2018): “We will begin by noting that the proportionality of sanctions implies that they are tempered to the particularized seriousness of the act in conjunction with the circumstances of a subjective nature (referring to the offender) and objective nature (referring to the typical act), noting that in the field of administrative sanctioning law in general and in the area of the securities market in particular, there

are no dosimetry criteria similar to those set out in Article 66 of the Penal Code and that the modifying circumstances differ from those of the penal sphere. Let us remember that the automatic application, without any nuance, of the informing principles of criminal law to the administrative sanctioning procedure is not admissible (S.TS 6-10-2003 Rec.772/1998)."

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Therefore, the Guidelines 04/2022 of the European Data Protection Committee on the calculation of administrative fines under the GDPR, in their version of May 12, 2022, submitted for public consultation, indicate that "Regarding the assessment of these elements, increases or decreases in a fine cannot be predetermined through tables or percentages. It is reiterated that the actual quantification of the fine will depend on all the elements collected during the investigation and other considerations related also to the previous experiences of the supervisory authority regarding fines." In point b).- Regarding the alleged lack of information in the forms concerning "complaints and claims," related to the processing of personal data obtained therein.

The infringement was determined:

"It is evident that the forms lacked the necessary information established in Article 13 of the GDPR, such as, for example, the identity and contact details of the data controller, the purposes of the processing for which the personal data are intended, and the legal basis for the processing; the possible recipients or categories of recipients of the personal data, where applicable; the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period or the right to lodge a complaint with a supervisory authority, thus failing to comply with the provisions of the current data protection regulations."

The responsible party was identified and the proposed sanction was:

"FIRST: That the Director of the Spanish Data Protection Agency sanctions the OFFICIAL COLLEGE OF ARCHITECTS OF GRANADA, holder of the website, <https://www.coagranada.es/>, for:

(...) Infringement of Article 13 of the GDPR, for the lack of information provided in the complaint forms regarding the processing of the personal data obtained, (with a sanction of 8,000 euros) (...)

In accordance with the provisions of the GDPR, the amount of the fine was assessed at 5,000 euros, which is in the lower range of possible sanctions, thus complying with the provisions of Article 83.1 of the GDPR: "Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are in each individual case effective, proportionate, and dissuasive."

We reiterate the considerations set forth in the previous section regarding the determination of the amount of the fine.

In point c).- Regarding the processing of personal data and the "Privacy Policy" of the website:

<https://www.coagranada.es/> whose holder is the Official College of Architects of Granada:

The lack of infringement was determined:

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"Therefore, in this case, based on the evidence available at this time, it is considered that the management of personal data carried out by the website, <https://www.coagranada.es/> does not contradict the provisions of the GDPR regarding consent in the processing of personal data and the information that must be provided to the data subject when their personal data is obtained."

In point d).- Regarding the Cookies Policy of the website <https://www.coagranada.es/>.

The infringement was determined:

"Therefore, the use of third-party cookies of a non-exempt nature, which are not disclosed in the

policies and despite not having given consent through the banner, could imply on the part of the respondent the commission of the infringement of Article 22.2 of the LSSI.”

The responsible party was identified and the proposed sanction was:

“FIRST: That the Director of the Spanish Data Protection Agency sanctions the OFFICIAL COLLEGE OF ARCHITECTS OF GRANADA, holder of the website, <https://www.coagranada.es/>, for:

(...) Infringement of Article 22.2 of the LSSI, regarding the use of third-party cookies of a non-exempt nature, without the consent of the user, with a sanction of 1,000 euros (one thousand euros).

The fine to be imposed has been determined in accordance with the provisions set forth in the LSSI. e).- Regarding the allegations presented as a result of the filing in exp202101340 and the change of criteria in the present file.

According to the respondent's claims, on 08/07/21, the complainant submitted a document to this Agency, in the same sense as the present complaint, indicating, among other things, that:

“(…) Such is the ignorance in the field of data protection by this College, that according to their statements, the ***POSITION.1 holds the title of DPO and Data Controller at the same time. As evidenced by the text accompanying the complaint form of this College, (…)”

Well, this complaint was filed by Resolution of the AEPD dated 11/11/21 in file E/08892/2021, indicating therein that:

“(…) Once the reasons presented by the OFFICIAL COLLEGE OF ARCHITECTS OF GRANADA, which are in the file, have been analyzed, it has been confirmed that there are no rational indications of the existence of an infringement in the field.”

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competence of the Spanish Agency for Data Protection, therefore, the initiation of a sanctioning procedure is not appropriate.

On 23/11/21, the claimant submitted a request for reconsideration (RR/0731/21) against the resolution issued by the Director of the Spanish Agency for Data Protection, in which, among other things, it was indicated that "the AEPD should clarify whether the DPD and ***POSITION.1 of COAG can be the same person."

On 04/04/22, this Agency issued a resolution regarding the request for reconsideration RR/0731/21, indicating the following concerning the issue raised by the claimant regarding the duplication of positions, DPD and ***POSITION.1 of COAG:

"Regarding the designation of the data protection officer as the same person who holds the position of ***POSITION.1 in general, it should be noted that the appellant cannot expect that in the appeal phase, facts that were not stated in a previous procedural phase will be taken into account.

The LPACAP provides in its article 118: 'Facts, documents, or allegations of the appellant will not be taken into account in the resolution of appeals when, having been able to present them during the allegations phase, they did not do so. The practice of evidence may also not be requested when its failure to be carried out in the procedure in which the appealed resolution was issued is attributable to the interested party.'

This rule contains a provision that is nothing more than the positive specification for the common administrative sphere of the general principle that the law does not protect the abuse of rights (article 7.2 of the Civil Code), in this case, the abuse of procedural rights. There is no doubt that this principle aims to prevent the allegations and evidence phase of the applicable procedures from becoming useless, as it would if the interested parties could choose, at their discretion, the moment to present evidence and allegations, since this would be contrary to a basic procedural order.

The responding party has informed that the person designated as the data protection officer holds the competencies and has the knowledge required for the performance of this position, adding that they have the collaboration of external professionals who are experts in the matter."

Therefore, there has not been a change of criteria by the administration; rather, in the cases presented, the reason for the archiving was that there was insufficient evidence to attribute an

infringement. In fact, this is stated in the inadmissibility resolution, which applies the principle of the presumption of innocence and that, due to the lack of sufficient evidence of non-compliance, the claim is archived. In the same sense, the resolution of the request for reconsideration states that, particularly regarding that non-compliance, it indicates that in the appeal phase, facts other than those evaluated throughout the procedure cannot be taken into account. This does not prevent a new claim from being submitted in which the claimant can substantiate aspects that demonstrate the existence of an infringement.

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f).- Regarding the Cookie Policy of the website <https://www.coagranada.es/>.

On 27/07/22, it was observed that upon entering the website of the Official College of Architects of Granada <https://www.coagranada.es/>, a PHPSESSID session cookie and another from Google, _GRECAPTCHA, were installed. The first is a technical cookie, and the second is used by websites developed with WordPress, such as the one under analysis, to protect web forms from spam and external attacks.

According to Opinion 4/2012 of WP 194 on the exemption from the requirement for cookie consent, the exemption applied to authentication cookies could also apply to others introduced specifically to enhance the security of the requested service, for example, those cookies whose purpose is to detect erroneous and repeated attempts to connect to a website or to protect the connection system against abuses, such as in the case of _GRECAPTCHA.

However, after navigating the website, it is observed that non-exempt third-party cookies are installed, which are not disclosed in the policies, despite the lack of consent given through the banner. It is noted that these analytical cookies are installed through the insertion of an interactive map from the Institute for Geoenvironmental Health of the Vivo Sano Foundation on the page:

<https://coagranada.es/mapa-zonas-radon-en-el-nuevo-cte-db-hs6/>

Therefore, there was a clear violation of the current regulations (LSSI) by not informing users of the website about the installation of non-exempt third-party cookies.

III.-

Committed infringement and Sanction to be imposed

Regarding the alleged conflicts of interest of the Data Protection Officer (DPO) in the person of ***POSITION.1 of the Official College of Architects of Granada.

In accordance with the evidence available, presented in section a) of DF II, it is considered that there is a violation of Article 38.6) of the GDPR.

This infringement may be sanctioned with a fine of up to €10,000,000 or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.4.a) GDPR.

Furthermore, Article 73.w) of the LOPDGDD considers serious, for the purposes of prescription:

“Not enabling the effective participation of the data protection officer in all matters related to the protection of personal data, not supporting him or interfering in the performance of his duties.”

In accordance with the indicated provisions, for the purpose of determining the amount of the sanction to be imposed in this case, it is considered appropriate to graduate the sanction according to the following aggravating criteria established by Article 83.2 of the GDPR:

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- The number of affected parties whose personal data is processed (section a), taking into account the link that the College of Architects of Granada has with registered members, contracted personnel, and

users in general.

It is also considered that the sanction to be imposed should be graduated according to the following aggravating criteria established by Article 76.2 of the LOPDGDD:

- The link of the infringer's activity with the processing of personal data (section b), considering the level of implantation of the College in the community, which involves personal data of hundreds of people accessing its services.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 LOPDGDD, regarding the infringement committed by violating what is established in Article 38.6 GDPR, allows for a final sanction of €5,000 (five thousand euros).

On the other hand, it is not appropriate to require corrective measures as the DPO of the Official College of Architects of Granada has been replaced by another person who is not ***POSITION.1 of the same.

IV.-

Committed infringement and Sanction to be imposed

Regarding the alleged lack of information in the forms concerning "complaints and claims," regarding the processing of personal data obtained therein.

In accordance with the evidence available, presented in section b) of DF II, it is considered that there is a violation of Article 13) of the GDPR.

This infringement may be sanctioned as established in Article 83.5.b) of the GDPR, which states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) the rights of the data subjects under Articles 12 to 22."

In this regard, Article 74.a) of the LOPDGDD considers minor, for the purposes of prescription:

"The failure to comply with the principle of transparency of information or the right of information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679."

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In accordance with the indicated provisions, for the purpose of determining the amount of the sanction to be imposed in this case, it is considered appropriate to graduate the sanction according to the following aggravating criteria established in Article 83.2 of the GDPR:

- The number of affected parties due to the processing of their personal data (subsection a), taking into account the connection that the College of Architects of Granada has with the registered members, the contracted staff, and users in general.

It is also considered that it is appropriate to graduate the sanction to be imposed according to the following aggravating criteria established in Article 76.2 of the LOPDGDD:

- The connection of the infringer's activity with the performance of personal data processing (subsection b), considering the level of establishment of the College in the community, where personal data of hundreds of people accessing its services are involved.

The balance of the circumstances contemplated in Article 83.5.b) of the GDPR, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for the establishment of a final sanction of 8,000 euros (eight thousand euros).

On the other hand, it is not appropriate to require a corrective measure as it has been verified that the information provided in the "complaints and claims" forms has been replaced to comply with the provisions of Article 13 of the GDPR.

V.-

Infringement Committed and Sanction to be Imposed

Regarding the Cookie Policy of the website

<https://www.coagranada.es/>

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of storage and data retrieval devices and, in particular, about the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that enables the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user are exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempted cookies would be the "User Input Cookies" (those used to fill out forms, or as management of a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a site).

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web); session cookies for multimedia player; session cookies for load balancing; user interface personalization cookies and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. On the contrary, it will be necessary to inform and obtain the prior consent of the user before using any other type of cookies, whether first-party or third-party, session or persistent.

In this case, upon entering the website for the first time, without accepting cookies or taking any action on the page, it has been verified that no cookies other than technical or necessary ones are used.

However, after browsing the website, it is observed that third-party cookies of a non-exempt nature are used, which are not disclosed in the policies, despite not having given consent through the banner. It happens that these analytical cookies are installed through the insertion of an interactive map from the Institute for Geoenvironmental Health of the Vivo Sano Foundation on the page:

<https://coagranada.es/mapa-zonas-radon-en-el-nuevo-cte-db-hs6/>

Therefore, the use of third-party cookies of a non-exempt nature, which are not disclosed in the policies and despite not having given consent through the banner, could imply that the respondent has committed an infringement of Article 22.2 of the LSSI, as it establishes that:

“Service providers may use devices for storing and retrieving data on the terminal equipment of recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent strictly necessary, for the provision of an information society service expressly requested by the recipient.”

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: “Using storage and data retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.”, and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI.

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According to these criteria, it is deemed appropriate to impose a sanction of €1,000 (one thousand euros) for the infringement of Article 22.2 of the LSSI, for the time during which the use of non-exempt cookies was maintained without the prior consent of the user.

Therefore, in accordance with the applicable legislation and considering the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the OFFICIAL COLLEGE OF ARCHITECTS OF GRANADA, with CIF: Q1875003D, holder of the website, <https://www.coagranada.es/>, the following sanctions:

- For the infringement of Article 38.6 of the GDPR, for the conflict of interest detected in the appointment of ***POSITION.1 of the College as Data Protection Officer, a sanction of €5,000 (five thousand euros).
- For the infringement of Article 13 of the GDPR, for the lack of information provided in the complaint forms regarding the processing of personal data obtained, a sanction of €8,000 (eight thousand euros).
- For the infringement of Article 22.2 of the LSSI, regarding the use of non-exempt third-party cookies without the user's consent, a sanction of €1,000 (one thousand euros).

Thus, the total sanction amounts to €14,000 (fourteen thousand euros).

SECOND: NOTIFY this resolution to the OFFICIAL COLLEGE OF ARCHITECTS OF GRANADA.

THIRD: Warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions established in Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for

Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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